



WILLOWTREE PLANNING

SCOPING REPORT

PROPOSED CONSTRUCTION AND OPERATION OF DATA CENTRE

23-25 Waterloo Road, Macquarie Park
Lot 2 in DP 1046090

—

Prepared by Willowtree Planning (NSW) Pty Ltd
On behalf of Greenbox Architecture

18 August 2025

In the spirit of reconciliation and recognition, Willowtree Planning acknowledges the Traditional Owners of this Country throughout Australia and their continuing and ongoing connections to land, waters and community. We show our respect to Elders - past and present. We acknowledge that we stand on this Country which was and always will be recognised as Aboriginal Land. We acknowledge the Traditional Owners of the Lands in this Local Government Area, belonging to the local Aboriginal People, where this proposal is located upon.

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APPENDICES

Appendix	Document	Prepared by
1	Preliminary Architectural Plans	Greenbox Architecture



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Proposed Construction and Operation of Data Centre
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1. INTRODUCTION

This Scoping Report has been prepared by Willowtree Planning Pty Ltd (Willowtree Planning), in relation to the proposed construction and operation of a data centre at 23-25 Waterloo Road, Macquarie Park (the Site) with associated works (the Proposal). The legal description of the property is Lot 2 in DP 1046090.

The purpose of this Scoping Report is to request **Project-Specific** Secretary's Environmental Assessment Requirements (SEARs) for the preparation of an Environmental Impact Statement (EIS) for a State Significant Development Application (SSDA).

Data centres are an emerging necessity in the digital world and are vital for online services, banking, emergency systems, transport, and business. Data centres are projected to rapidly expand in Australia from 1,350 megawatts (MW) in 2024 to 3,100 MW by 2030, resulting in an investment of \$26 billion into Australia's economy. The Proposal is considered a primary contribution to this investment with an expected estimated development cost (EDC) in excess of \$700 million.

Data centres currently support 9,600 full-time equivalent (FTE) jobs, with the workforce anticipated to reach 17,900 FTE by 2030. The Proposal is projected to employ significant levels of staff throughout the Site and offsite. Investment into NSW's digital economy and the provision of skilled employment opportunities in the Macquarie Park Precinct (MPP) are key objectives of the Proposal. The Proposal will address the MPP Design Guide and appropriately consider the relevant legislation, guidelines, and policies. The Proposal presents an opportunity to positively contribute to Sydney's growing economy and support the increasing demand for online services, banking, emergency systems, transport, and business in Australia.

The Proposal is anticipated to have a total power consumption of 70 megawatts which satisfies the definition of state significant development (SSD) pursuant to Chapter 2, Schedule 1, Clause 25 of *State Environmental Planning Policy (Planning Systems) 2021* (Planning Systems SEPP), being development for the purpose of a data centre that has a total power consumption of more than 15 megawatts.

This Scoping Report has been prepared in accordance with the NSW Department of Planning, Housing, and Infrastructure (the Department) *State significant development guidelines – preparing a scoping report*, October 2022 (the Guidelines) in accordance with Section 173 of the *Environmental Planning and Assessment Regulation 2021* (EP&A Regulation). This Scoping Report should be read in conjunction with the Preliminary Architectural Plans and Scoping Summary Table appended.

1.1 Proponent Details

The Proponent details for the Proposal are listed in **TABLE 1** below.

TABLE 1: PROPONENT DETAILS	
Name	Greenbox Architecture Pty Ltd
ABN	79 139 779 098
Address	L22, 68 Pitt St Sydney, NSW 2000

1.2 Overview of the Site and Regional Setting

The Site is located on the north-eastern side of Waterloo Road, near the intersection with Eden Park Drive, Macquarie Park and has an area of approximately 11,200sq.m. The Site is located within the Ryde Local Government Area (LGA) and is zoned E2 Commercial Centre and E3 Productivity Support, pursuant to the RLEP 2014. The Proposal is categorised as a data centre, which falls within the group term light industries which is permitted with consent in the E3 Productivity Support zone under the



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RLEP 2014. The Site is located within the MPP and specifically within Neighbourhood 5 - Burbigal of the Macquarie Park Design Guide (the Design Guide), to which provisions are applicable. The Site currently contains a data centre building with vehicular access from Waterloo Road.

The Site is located in an area that comprises a wide range of commercial and industrial uses, benefiting from its proximity to key transport infrastructure including the M2 motorway.

A map of the Site in its regional setting with context of the MPP is provided in **Figure 1** below.

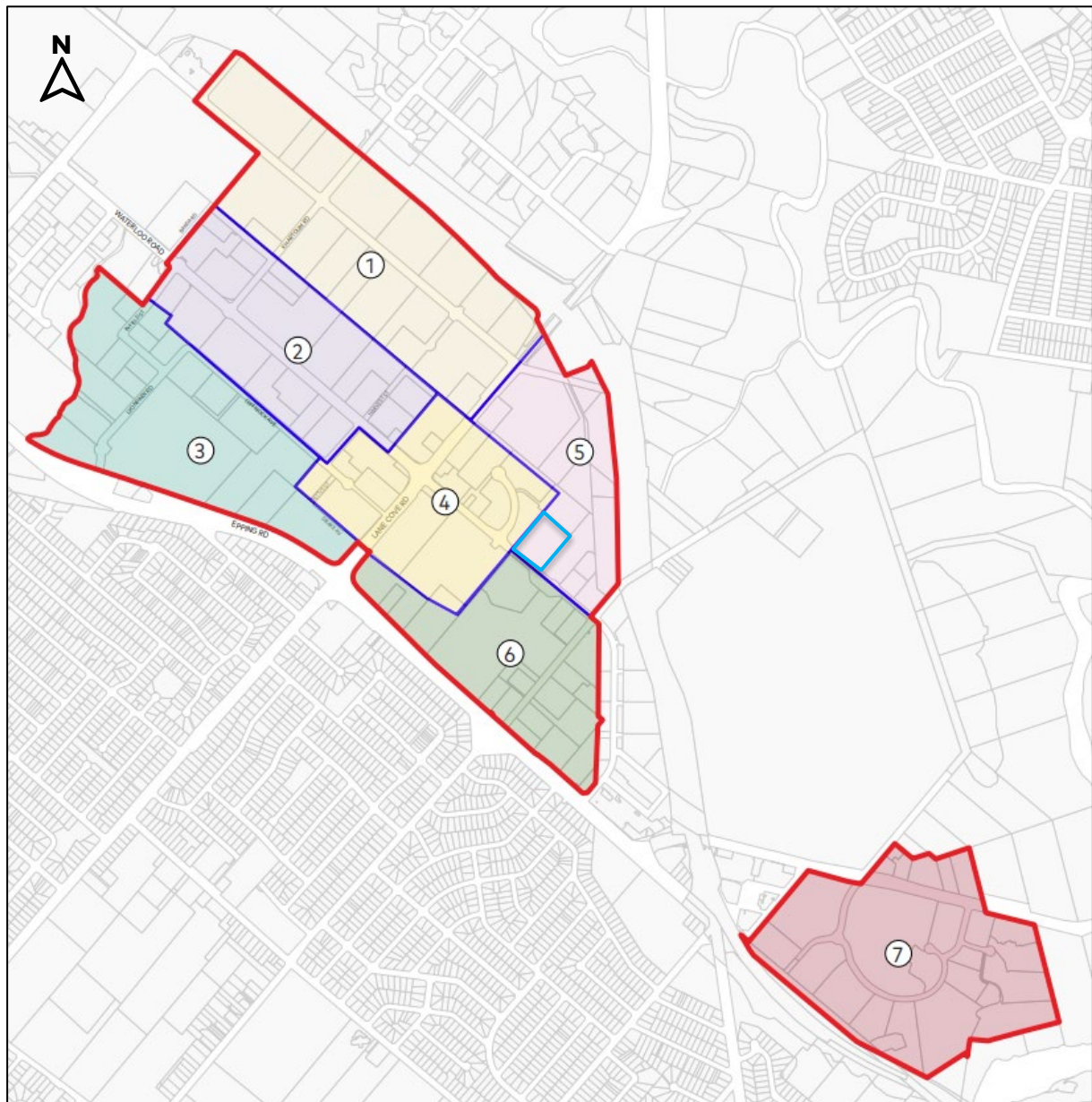


Figure 1: Macquarie Park Precinct Context (Site outlined in light blue) (Source: NSW Government/Willowtree Planning, 2025)

1.3 Permissibility

The Proposal is categorised as a data centre, which falls within the group term 'light industries' and is permitted with consent in the E3 Productivity Support zone, pursuant to the RLEP 2014. Data centres are also permitted with consent in the E3 Productivity Support zone under the *State Environmental Planning Policy (Transport and Infrastructure) 2021* (Transport and Infrastructure SEPP). The Site is



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operating with an existing data centre approval issued by the City of Ryde Council (Council) under consent no. 121/00 on 21 March 2000. Pursuant to Part 7 of *Environmental Planning and Assessment Regulation 2021* (EP&A Regulation), the Proposal is permissible subject to existing use rights. Refer to **Section 5** of this Scoping Report for further details.

1.4 Overview of Development

The Proposal will seek development consent for the construction and operation of a data centre, including necessary infrastructure and servicing. Preliminary Architectural Plans have been prepared by Greenbox Architecture and are included at **Appendix B**. Preliminary development particulars are as follows:

- Demolition and site preparation works, including the removal of one (1) tree;
- Bulk earthworks across the Site and additional Site retaining works;
- Infrastructure comprising of additional civil works, stormwater, and utilities servicing;
- Road construction;
- Plant equipment including;
- 39 backup generators with associated 769m³ (835kg / 0.835 tonnes) of diesel storage and 392 cabinets for lithium-ion battery storage;
- Construction of indicative layout road in accordance with the Design Guide;
- Two (2) new vehicle crossings adjoining the proposed road;
- Land dedication/allocation for the proposed road;
- Construction of a data centre campus containing the following:
 - 32 at-grade car parking spaces;
 - 18 data halls with 16 data halls equally divided across Level 1, Level 2, Level 4, and Level 5 and two (2) data halls at Level 7, with a total capacity of 70 megawatts;
 - Nine (9) storeys of office space; and
 - Four (4) total MV switchboards on Site;
- Complementary landscaping and offset planting (no. of planting to be confirmed).

Development details are discussed further at **Section 4** of this Scoping Report.

1.5 Objectives of the Development

The vision of the Proposal is to develop the Site into a modern and significant data centre, delivering millions of dollars of investment in NSW's digital economy. The Proposal is positioned as a crucial component of Greater Sydney's digital infrastructure, with the rise of hyperscale data centres (50 megawatts and greater) reflective of the global surge in artificial intelligence (AI) and cloud computing, which is positioned to grow Australia's economy by \$45 billion to \$115 billion by 2030. To achieve this growth, NSW must leverage large-scale processing and storage data centres to remain competitive within the Asia-Pacific (APAC) region. The Proposal is committed to driving this evolution, while ensuring environmental impacts and planning considerations are adequately addressed. The key objectives of the Proposal are outlined below:

- **A Competitive Northern Sydney:** Provide a world-class data centre that is internationally competitive and reflective of Australia's growth in the sector. An investment in excess of \$700 million will help deliver significant infrastructure to the region, provide employment opportunities within the technology trades, including for information and communication technology (ICT) professionals, which are needed to support the growing demand for data centre capacity.



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- **Efficiency:** Data centres consolidate electricity demand and help businesses operate without needing to rely on their own on-site servers. Large scale data centres are found to be up to five times more efficient than on-premise servers and smaller-scale data centres as operational practices, such as consolidation of servers, allowing for less energy to be used to perform the same unit of work. The Proposal will deliver efficient data storage services by maximising capacity and minimising resources needed for day-to-day operation.
- **Sustainability:** The Proposal will create and facilitate the aims for best-in-class power usage efficiency (PUE) and to optimise water usage efficiency (WUE), including and exploring opportunities to utilise recycled water and for water capture and re-use. The Proposal also seeks to minimise impacts on existing and future receivers within the wider area.



2. THE SITE

2.1 Site Identification and Characteristics

The Site is identified as 23-25 Waterloo Road, Macquarie Park, containing the following land holding:

TABLE 2. SITE IDENTIFICATION			
Address	Legal Description	Land Zoning	Land Area (approx.)
23-25 Waterloo Road, Macquarie Park	Lot 2 in DP 1046090	E2 Commercial Centre E3 Productivity Support	11.2 hectares

The Site is rectangular in shape and is located on the north-eastern side of Waterloo Road, near the intersection with Eden Park Drive, Macquarie Park. The Site has a 66.8m primary frontage to Waterloo Road and has a variable depth ranging from 118.7m to 123.3m. The site has an area of approximately 11,200sq.m. The Site contains an existing data centre and associated hardstanding, including 32 car parking spaces. The Site also contains several trees along the Waterloo Road frontage and other plantings along the eastern and western boundaries.

The Site is located approximately 20km north of Sydney Airport, 20km east of Parramatta CBD and 16km northwest of Sydney CBD.

The Site is located within the Ryde LGA and is zoned E2 Commercial Centre and E3 Productivity Support, pursuant to the RLEP 2014. The Proposal is categorised as a data centre, which falls within the group term light industries which is permitted with consent in the E3 zone under the RLEP 2014. The Site is located within Neighbourhood 5 - Burbigal of the Design Guide, to which provisions are applicable.

Refer to **Figure 2** for the regional context and **Figure 3** and **Figure 4** for local context of the Site.



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Figure 2: Regional Context Map (Site outlined in light red) (Source: Six Maps/Willowtree Planning, 2025)

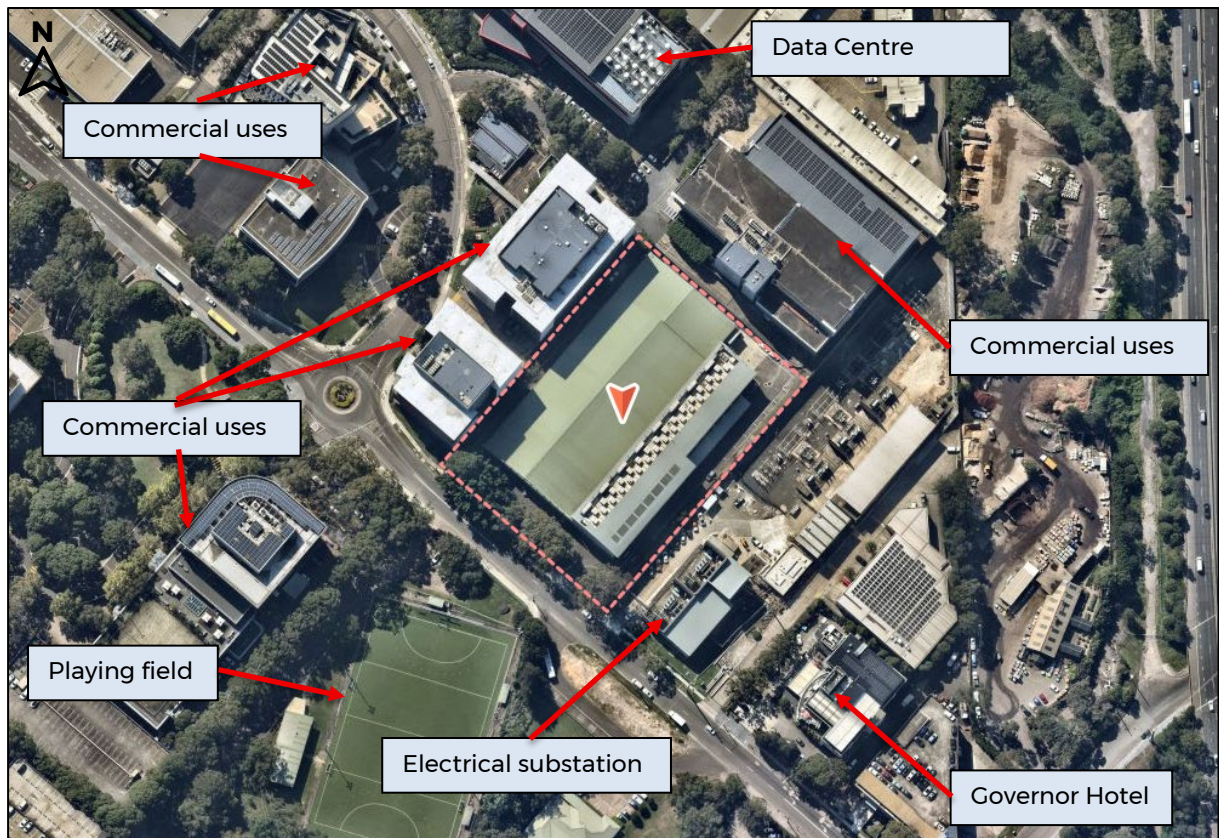


Figure 3. Aerial view of the site (Source: Nearmap, 2025)

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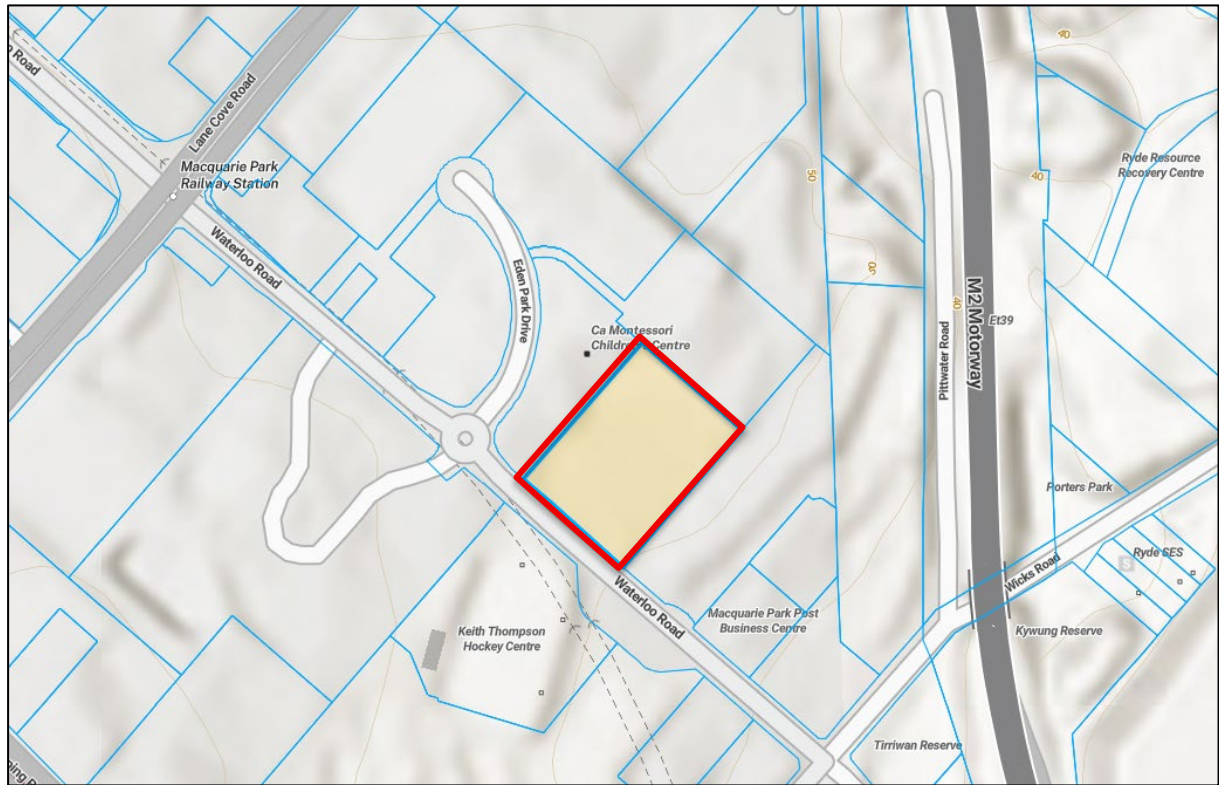


Figure 4. Cadastre Map (Source: NSW Explorer, 2025)

Existing attributes of the Site and surrounding context are noted as follows:

- The Site is generally surrounded to the northeast, northwest, and southwest by commercial uses and E2 Commercial Centre zoned land to the south and west of the Site and E3 Productivity Support zoned land to the north of the Site;
- The Keith Thompson Hockey centre is located opposite the Site to the south and zoned as RE1 Public Recreation;
- The Site adjoins an electricity substation to southeast and east, operated by Ausgrid and zoned SP2 Infrastructure: Electricity Substation;
- The Site is approximately 330m west of the M2 Motorway and 290m east of Lane Cove Road;
- The nearest residential development is approximately 290m to the east at Halifax Street, which is zoned R4 High Density Residential and under construction; and
- The Site is directly north of 144 Wicks Road, Macquarie Park, which is the location of SSD-48853239 for the proposed construction and 24-hour operation of a Woolworths customer fulfilment centre (CFC) and a warehouse or distribution centre.
- The Site is not identified as a heritage item, nor is the Site within a heritage conservation area.

Figure 5, Figure 6 and Figure 7 below provide details of the key Site features.



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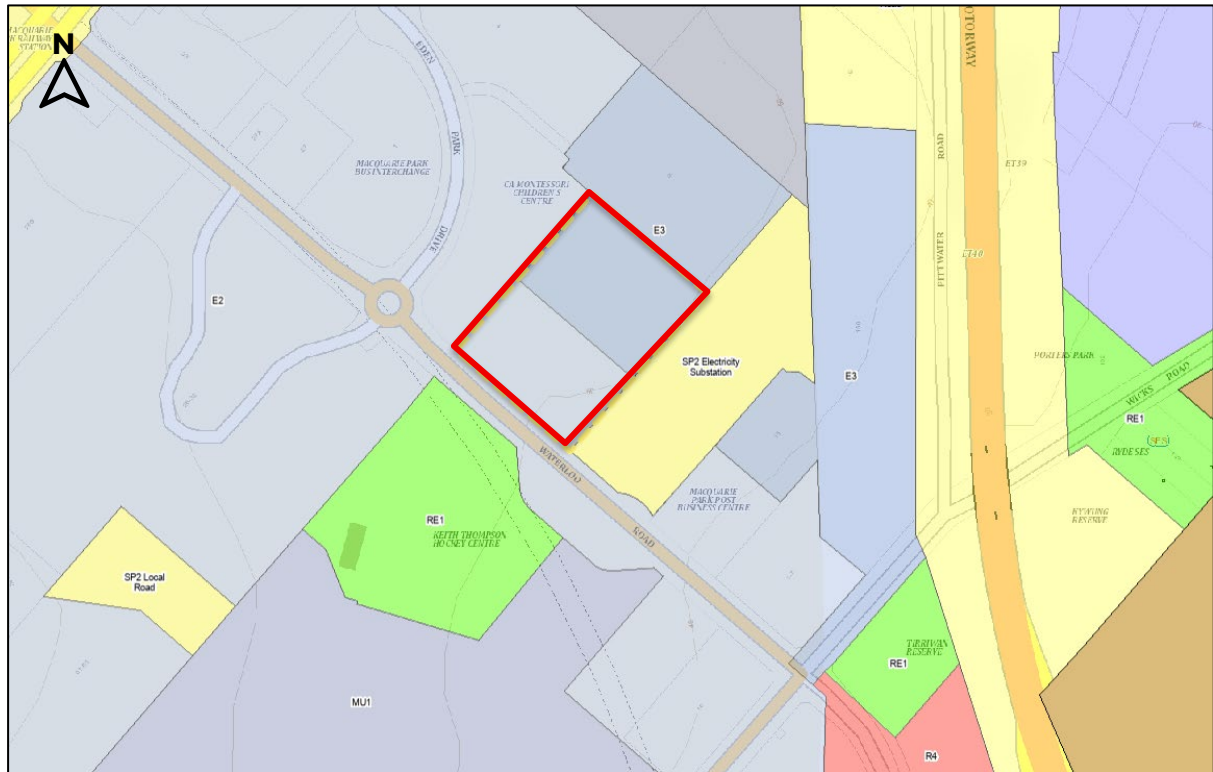


Figure 5. RLEP2015 Land Use Zones (Source: NSW Planning Portal, 2025)

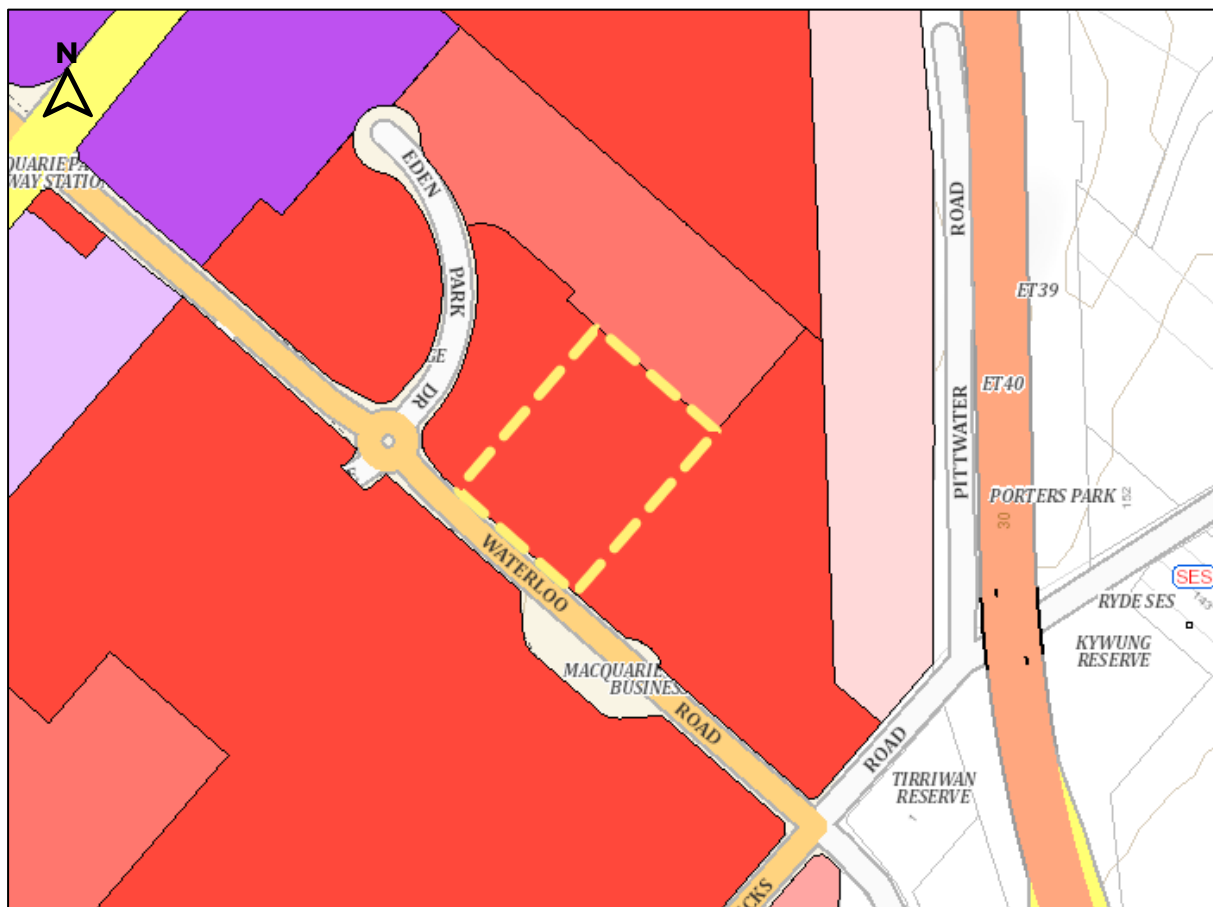


Figure 6. Macquarie Park Corridor Precinct Incentive Floor Space Ratio Map (Source: NSW Planning Portal, 2025)

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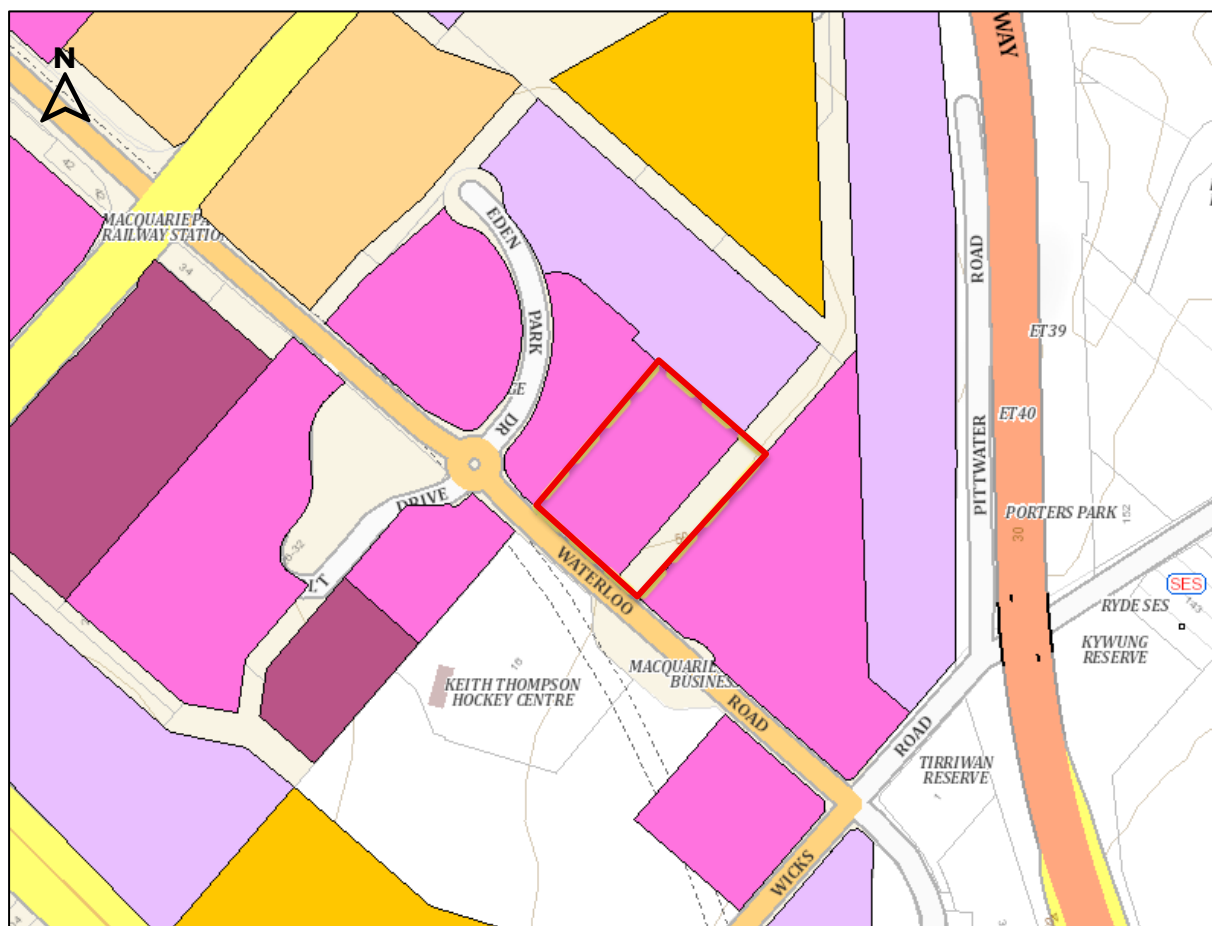


Figure 7. Macquarie Park Corridor Precinct Incentive Height of Buildings Map (Source: NSW Planning Portal, 2025)

2.2 Development History

The Site was approved by Council under consent no. 121/00 on 21 March 2000 for use as an Internet Data Centre including provision for the hosting of internet services and alterations to the existing industrial building. Since then, numerous applications and modifications have been approved by Council. Details of these approvals are set out in **TABLE 3** below.

A review of Council's development tracker has confirmed that the Site has been subject to a singular Complying Development Certificate issued on 10 March 2023 for internal refurbishment to an existing office.

TABLE 3. PLANNING HISTORY OF SITE			
No.	DA Reference	Description	Status
1	121/00	Commencement of a use as an Internet Data Centre including provision for the Hosting of Internet Services and Alterations to the Existing Industrial Building.	Approved: 21/03/2000
2	CDP2023/0162	Internal refurbishment to an existing office. GDL230013	Approved: 14/03/2023



2.3 Cumulative Impacts with Future Projects

The potential cumulative impacts of the Proposal will be addressed in the EIS in accordance with DPHI's *Assessing Cumulative Impacts guidelines*. This includes consideration of the following matters:

- Other State significant development (SSD) and State significant infrastructure (SSI) projects
- Projects that are classified as designated development and require an EIS
- Projects that require assessment under division 5.1 of the EP&A Act that are likely to significantly affect the environment and require an EIS
- Projects that have been declared to be controlled actions under the Commonwealth Environment Protection and Biodiversity Conservation Act 1999 (EPBC Act)
- Any major greenfield and urban renewal developments that are scheduled for the area (e.g. new areas zoned for urban development).

The surrounding area is subject to significant industrial and commercial development and investment, with numerous development applications having been determined or under assessment in the area, which may be relevant in the cumulative impact assessment of the Proposal. Refer to **TABLE 4** for the descriptions and status of each application.

TABLE 4. SURROUNDING DEVELOPMENT APPLICATIONS			
No.	DA Reference	Description	Status
1	4 Talavera Road, Macquarie Park (CDA2022/0007)	Change of use of warehouse 6 from Document and Data Storage Facility to a Warehouse and Distribution Centre (No building works) - CDC-131705	Approved: 21/12/2022
2	1-5 Khartoum Road, Macquarie Park (SSD-80814238)	Development of a 10 storey (73.4m) data centre including eight (8) data halls and 19 generators with associated car parking and landscaping.	Prepare EIS
3	1-5 Khartoum Road, Macquarie Park (SSD-63235720)	Construction and operation of a 5 storey data centre with a building height of 45m and a capacity of 35 MW, diesel storage, part road construction, landscaping, carparking and associated infrastructure.	Under Assessment
4	1-5 Khartoum Road, Macquarie Park (SSD-59568708)	Demolition of existing buildings at the west of the site and construction a new BTR development comprising 44,700sqm GFA with 485 units across 3 buildings, basement car parking, construction of Road 23 and Torrens title subdivision.	Withdrawn
5	1-5 Khartoum Road, Macquarie Park (SSD-58594960)	Demolition of existing buildings at the west of the site, site preparation and construction of a new BTR development comprising 44,700sqm GFA with 485 dwellings across 3 buildings, Road 23, basement parking, retail and subdivision.	Withdrawn
6	3 Halifax Street, Macquarie Park (SSD-80675497)	Amending DA to an approved local development application for a residential flat building, increasing the height from 24 to 46 storeys, including associated basement parking changes, construction of a Mews Road and external landscaping works.	Prepare EIS



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7	3 Halifax Street, Macquarie Park (SSD-80675490)	Amendments to an approved local development application for a residential flat building, increasing the height from 24 to 46 storeys, including associated basement parking amendments.	Prepare EIS
8	2-4 Giffnock Avenue, Macquarie Park (SSD-79017211)	Construction of a mixed-use residential and commercial development comprising over 400 residential apartments including a 10% affordable housing contribution and provision of open space and road infrastructure.	Prepare EIS
9	144 Wicks Road, Macquarie Park (SSD-48853239)	The proposal would involve the construction and 24-hour operation of a customer fulfilment centre (CFC) and a warehouse or distribution centre.	Response to Submissions
10	144 Wicks Road, Macquarie Park (LDA2015/0144)	Construction of a part 1, part 2 storey building to be used as a garden centre, hardware & building supplies store;	Approved: 22/10/2015
11	269 Lane Cove Road, Macquarie Park (SSD-63168959)	Demolition of existing structures, site preparation works and construction and operation of a new Data Centre and Innovation Hub with urban plaza and the delivery of new roads.	Response to Submissions
12	111, 113, 115, 117 Wicks Road And 29, 31-35 Epping Road, Macquarie Park (SSD-83872208)	Concept development application seeking consent for building envelopes for future residential towers, land uses, maximum gross floor area and 9,700sqm public recreation area within Key Site 11 at Macquarie Park.	Prepare EIS
13	4, 6A and 6-10 Talavera Road, Macquarie Park (SSD-74069708)	Construction, fit out and 24/7 operation of a Data Centre including ancillary office space with an initial load capacity of approximately 90MVA and associated carparking and landscaping.	Response to Submissions
14	4-38 Talavera Road, Macquarie Park (SSD-46011220)	The proposed development seeks: - concept approval for four warehouse and distribution building envelopes - Stage 1 approval for two warehouse multi-storey warehouse buildings.	Withdrawn
15	35 Waterloo Road, Macquarie Park (SSD-52947710)	Demolition and construction of a new BTR development consisting of 46,314m ² of GFA encompassing 513 units across 4 buildings ranging between 7-20 storeys, with retail, community uses and recreation areas at ground floor level and basement parking.	Response to Submissions
16	17-23 Talavera Road, Macquarie Park (SSD-24299707)	The project would involve the construction and operation of an expansion to an existing data centre campus.	Approved: 19/01/2024
17	6 Halifax Street, Macquarie Park (SSD-65931214)	The proposal seeks consent for 135 affordable housing dwellings consisting of 78 one bedroom units (58%) and 57 two bedroom units (42%). The building will be owned and	Approved: 07/10/2024



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		managed by Link Wentworth being the registered CHP.	
18	44-50 Waterloo Road, Macquarie Park (SSD-59516710)	Construction and operation of a new data centre, with an overall height of 65 metres.	Prepare EIS
19	11-17 Khartoum Road and 33-39 Talavera Road, Macquarie Park (SSD-10467)	Construction and 24-hour operation of a data centre, comprising: • a five-storey data storage building with ancillary office space • supporting infrastructure, services and landscaping.	Approved: 28/05/2021



3. STRATEGIC CONTEXT

This section of the Scoping Report identifies the key issues that are relevant to the Proposal's locational and strategic context and provides a justification for the Proposal based on the relevant key strategic themes and directions. This section also provides an analysis of alternatives that were considered as part of the scoping process.

3.1 Project Justification

The Proposal responds to and is aligned with several key strategic and statutory planning framework documents, including:

- Capitalise on Australia's unique opportunity to become a competitive location for data storage development, boosting our economy;
- The general and precinct-specific vision and objectives for the E2 Commercial Centre and E3 Productivity Support zones within the MPP;
- The MPP Design Guide; and
- The desired generation of employment opportunities to support the growth of Sydney and attract investment from the data centre sector.

The Proposal is a multi-million-dollar investment in NSW's digital economy that is necessary to ensure Australia continues to remain competitive in the data storage sector within the APAC region. The Proposal is committed to aligning with the strategic goals and planning priorities within the MPP whilst ensuring environmental impacts and planning considerations are adequately addressed when delivering the data centre. The Proposal will harness large-scale processing and storage to remain competitive and boost the data storage sector in Sydney.

3.2 Strategic Planning Policies

A summary of the Proposal's consistency with the relevant strategic context, as established by government plans, policies, and guidelines, is set out in **TABLE 5** below.

TABLE 5: CONSISTENCY WITH THE RELEVANT STRATEGIC PLANNING POLICIES	
Strategic Plans/Policies	Response
NSW Government plans	
<i>Greater Sydney Region Plan, A Metropolis of Three Cities</i>	The <i>Greater Sydney Region Plan</i> (the Region Plan) provides the overarching strategic plan to manage growth and change in Greater Sydney. The Site is located within the Eastern Harbour City and is positioned to harness the potential of the Eastern Economic Corridor from Macquarie Park to Sydney Airport, which is the State's greatest economic asset. The key directions that are most relevant to the Proposal are considered below: ▪ Infrastructure and Collaboration: The Site has access to existing road infrastructure, being situated near the existing M2 Motorway, which forms a direct link to the wider Eastern Economic Corridor. The Proposal will utilise the adjoining electricity substation, which is operated by Ausgrid. The Proposal incorporates the introduction of a new road along the eastern boundary, in line with the Design Guide. Additionally, the Proposal will generate



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TABLE 5: CONSISTENCY WITH THE RELEVANT STRATEGIC PLANNING POLICIES

Strategic Plans/Policies	Response
	significant investment into local and state infrastructure through payment of contributions. ▪ Productivity: The economic potential of the MPP will be supported by the intended future data centre operations on the Site. The Proposal seeks to facilitate a multi-million-dollar investment into the MPP and unlock numerous construction and operational jobs. ▪ Sustainability: The Proposal will promote sustainable outcomes through the delivery of landscaping compliant tree canopy, while ensuring the strict security requirements of the data centre can be accommodated. The Proposal will target best in class Power Usage Effectiveness (PUE) and investigate recycled water opportunities to enhance Water Usage Effectiveness (WUE).
<i>North District Plan 2018</i>	The vision of the <i>North District Plan 2018</i> (the District Plan) will be achieved by, amongst others, enhancing the role of the Eastern Economic Corridor, supporting jobs growth in strategic centres and retaining and managing industrial and urban services land. The Proposal will contribute to these aims of the <i>North District Plan 2018</i>.
<i>Future Transport Strategy 2056</i>	The <i>Future Transport Strategy 2056</i> sets the strategic directions for transport to achieve world-leading mobility for customers, communities, and businesses and guides land use and transport planning across NSW. Consistent with the strategy's vision, the Site is located in an accessible location and is well connected to the Sydney Airport and the wider Greater Sydney Region.
City of Ryde Council's plans and strategies	
<i>Planning Ryde Local Strategic Planning Statement 2020</i>	The <i>Planning Ryde Local Strategic Planning Statement 2020</i> (LSPS) sets out the 2036 vision for Ryde. The Site is located within MPP. One of the key challenges for MPP is to maintain the MPP's role as a key economic powerhouse for Sydney and to continue to offer employment opportunities and strong economic growth. The MPP is well situated on Sydney's Economic Development Corridor between Parramatta and the City; and is currently serviced by the Sydney Metro North West and key arterial roads. The Proposal aims to maximise economic growth and minimising environmental impacts, whilst being well-located amongst key transport initiatives that encourages connectivity.
<i>Waterloo Road Masterplan</i>	The <i>Waterloo Road Masterplan</i> (WRM) is a masterplan focusing specifically on Waterloo Road and sits within the wider LSPS. The WRM is a masterplan framework for the



TABLE 5: CONSISTENCY WITH THE RELEVANT STRATEGIC PLANNING POLICIES

Strategic Plans/Policies	Response
	transformation of Waterloo Road from a 'movement corridor' into a 'vibrant street', prioritising active transport as an alternative to private vehicles and alleviating traffic congestion. The Proposal incorporates a publicly accessible (but privately owned) soft landscaped area fronting Waterloo Road that incorporates trees and seating, in line with the WRM.
<i>Local Infrastructure Strategy 2024</i>	The <i>Local Infrastructure Strategy 2024</i> (LIS) is a comprehensive framework for addressing infrastructure gaps, enhancing service delivery, and promoting resilience in the face of future challenges for the City of Ryde. The Proposal includes the introduction of a new public road and a pedestrian through-site link, thus directly improving the local infrastructure and connectivity. The Proposal will also deliver contributions in accordance with the <i>Macquarie Park Corridor Section 7.12 Contributions Plan 2025</i>.
Design policies and guidelines	
<i>Government Architect NSW Connecting with Country</i>	The <i>Connecting with Country Framework 2020</i> acts as a guide for developing connections with Country to inform the planning, design, and delivery of built environment projects in NSW. The Connection to Country Framework will be addressed within the Design Report that accompanies the EIS.
<i>Better Placed</i>	Better Placed is an integrated design policy that is underpinned by seven (7) objectives for good design and provides guidance on the delivery of architecture, public places, and environments in NSW. The principles of Better Placed will be considered and will inform the urban design and landscape response and ultimate site layout, particularly with minimising impacts to sensitive land users in the locality as they transition to industrial development. The design reports accompanying the EIS will consider and address the relevant objectives in detail. A preliminary review of the seven (7) principles of Better Placed are discussed below. Better Fit: The MPP incorporates a range of existing and emerging industrial and commercial development. The Proposal will factor the Site location, context, and social setting, addressing key impacts on the transitioning sensitive land users in the locality. The Proposal will be developed to resonate with the local character and the emerging scale of data centres in NSW.



TABLE 5: CONSISTENCY WITH THE RELEVANT STRATEGIC PLANNING POLICIES

Strategic Plans/Policies	Response
	Better Performance: PUE and WUE are critical components for the Proposal. Details of how the Proposal meets sustainability targets will form part of the EIS. Better for Community: The Proposal will generate high skilled employment opportunities in the MPP and improve the day-to-day lives of the community, as Australia's reliance on data storage continues to grow. Better for People: The Proposal will provide communal open spaces for members of the public and workers along the Waterloo Road frontage, state of the art office spaces and security measures necessary to protect data. Better Working: The Proposal will promote efficient use of the Site and maximise the potential output of a data centre. Better Value: The Proposal is anticipated to generate significant value to the MPP and wider NSW and improve the user experience to help facilitate the surge in AI and cloud storage. Better Look and Feeling: The Proposal will be designed to not detract from the visual setting of the MPP. A considered balance of materials, finishes, proportions, and details will be considered noting the design limitations for the necessary security measures to be effective.

3.3 Consideration of Feasible Alternatives

Section 192 of the EP&A Regulation requires an analysis of any feasible alternatives to the Proposal, including the consequences of not carrying out the Proposal. The following options were considered to address the strategic need and project objectives.

Option 1 - Do nothing: 'Doing nothing' would be inconsistent with the envisaged outcomes for the Site in accordance with the MPP planning priorities. Not carrying out the Proposal will result in a missed opportunity to realise the vision of the Site and implement an internationally competitive data centre. 'Doing nothing' would result in minimal economic benefit, result in less (and less quality) employment generation, and not support the growing the data centre sector in Greater Sydney.

Option 2 - Design alternatives: A master planning process was conducted to assess the feasibility of a data centre with a maximum building height of 20m. Given the significantly lower IT capacity achieved, this outcome would not optimise colocation of data storage facilities and was therefore not considered to be an efficient use of the Site.

Large scale data centres are found to be significantly more efficient than smaller-scale enterprises and public sector organisations. This means that less energy is used to perform the same unit of work with large scale data centres being up to five times more efficient than on-premise servers and smaller-scale data centres.



4. PROPOSAL DESCRIPTION

The Proposal will seek development consent for the construction and operation of a data centre, including necessary infrastructure and servicing. Preliminary Architectural Plans have been prepared by Greenbox Architecture and are included at **Appendix 1**. Preliminary development particulars are as follows:

- Demolition of the existing building;
- Site preparation works;
- Earthworks and additional site retaining;
- Infrastructure comprising civil works and utilities servicing;
- Construction of indicative layout road in accordance with the Design Guide;
- Construction of a data centre, with the following:
 - 32 car parking spaces at basement level;
 - 18 data halls with 16 data halls equally divided across Level 1, Level 2, Level 4, and Level 5 and two (2) data halls at Level 7, with a total capacity of 70 megawatts; and
 - Nine (9) Storeys of office space.
- Two (2) new vehicle crossings adjoining the proposed road; and
- Complementary landscaping and offset planting (no. of planting to be confirmed).

The Proposal includes those works as identified in **TABLE 6** below.

TABLE 6: DEVELOPMENT PARTICULARS	
Component	Comment
Site Area	11,200m ²
Primary Land Use	Data Centre
Ancillary Land Uses	Office premises
Gross Floor Area	23,375m ²
Floor Space Ratio	2.09:1
Total Power Consumption	70 megawatts
Building Height	Approximately 64m
Car Parking	32
Landscaping/trees	Total landscaping and tree removal to be confirmed
Back-Up Generators	39 back-up generators
Dangerous Goods	769m ³ (835kg / 0.835 tonnes) diesel storage capacity
Estimated Jobs	Total estimated jobs (construction and operation) to be confirmed

The supporting generators, office space and civil works are ancillary to the proposed data centre building, required to service, operate and maintain the data centre use on the Site. The Proposal is committed to designing the proposed road along the eastern boundary of the Site in accordance with the MPP Design Guide.

Development particulars will be expanded upon as the Proposal progresses through its design stage, with additional details being provided in the EIS.

Figure 8, Figure 9, Figure 10 and **Figure 11** below include an excerpt of the Preliminary Architectural Plans prepared by Greenbox Architecture available at **Appendix 1** of this Scoping Report.



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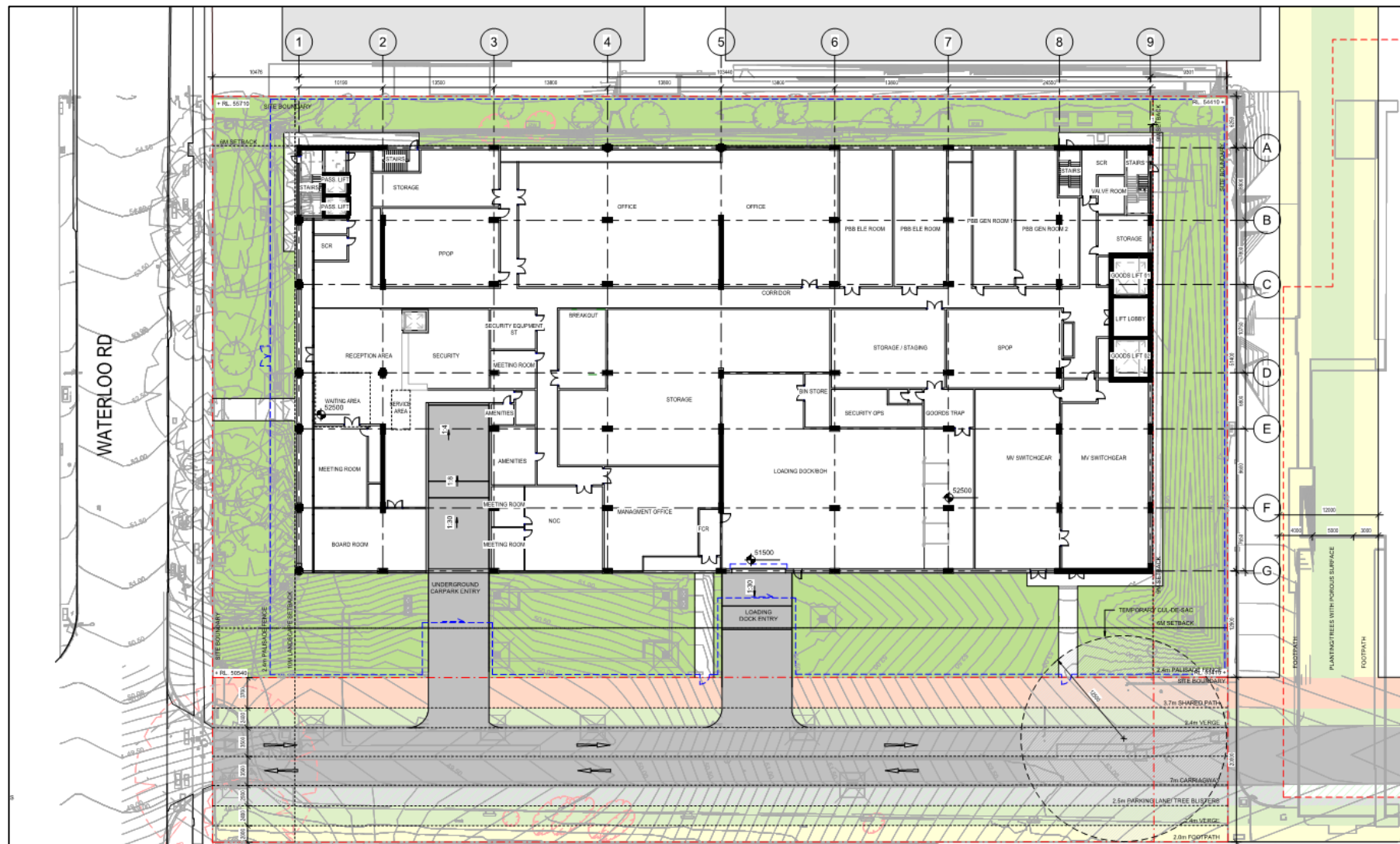


Figure 8. Concept Site Plan (Source: Greenbox Architecture, 2025)



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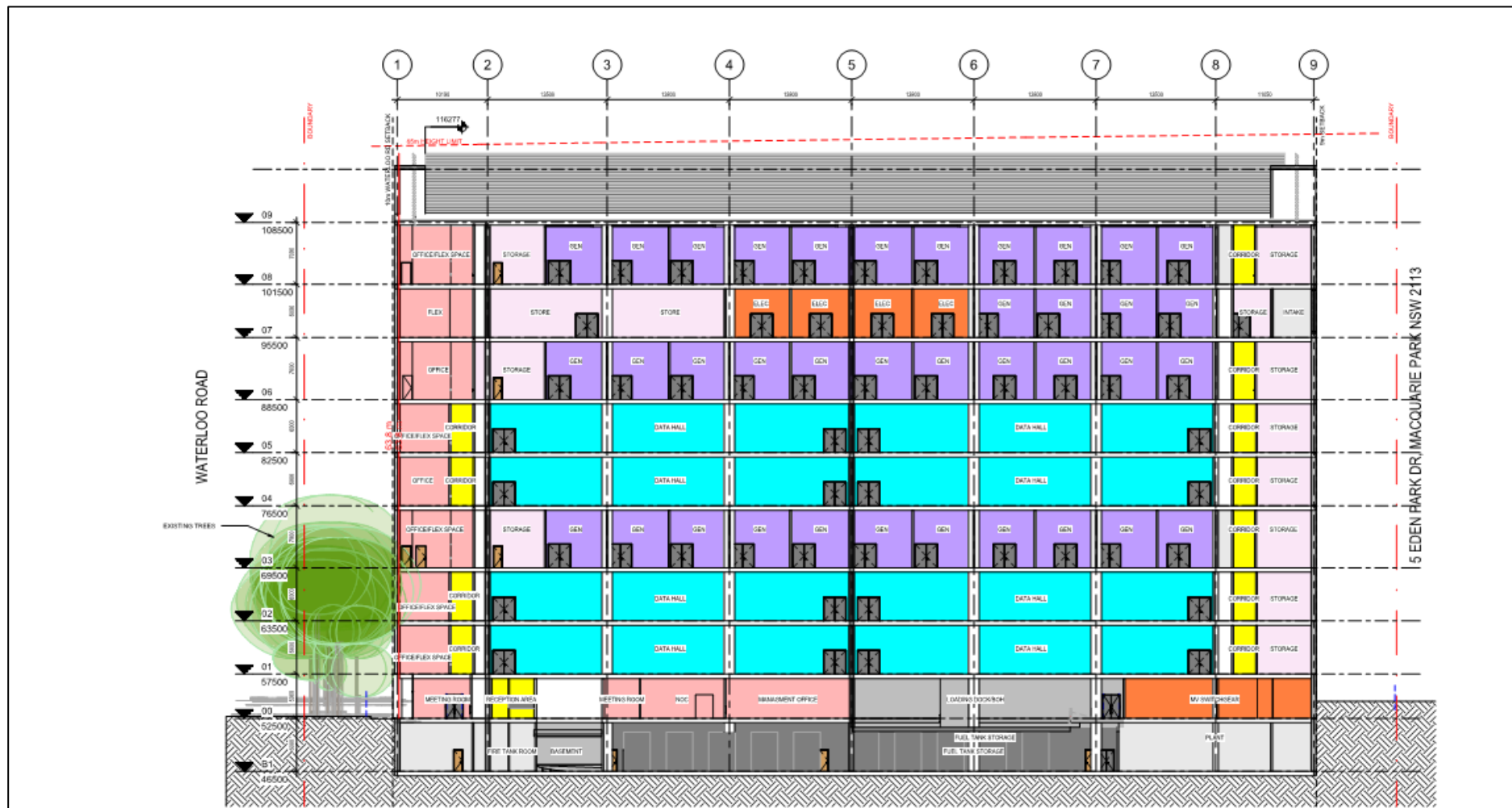


Figure 10. Concept Section 1 (Source: Greenbox Architecture, 2025)

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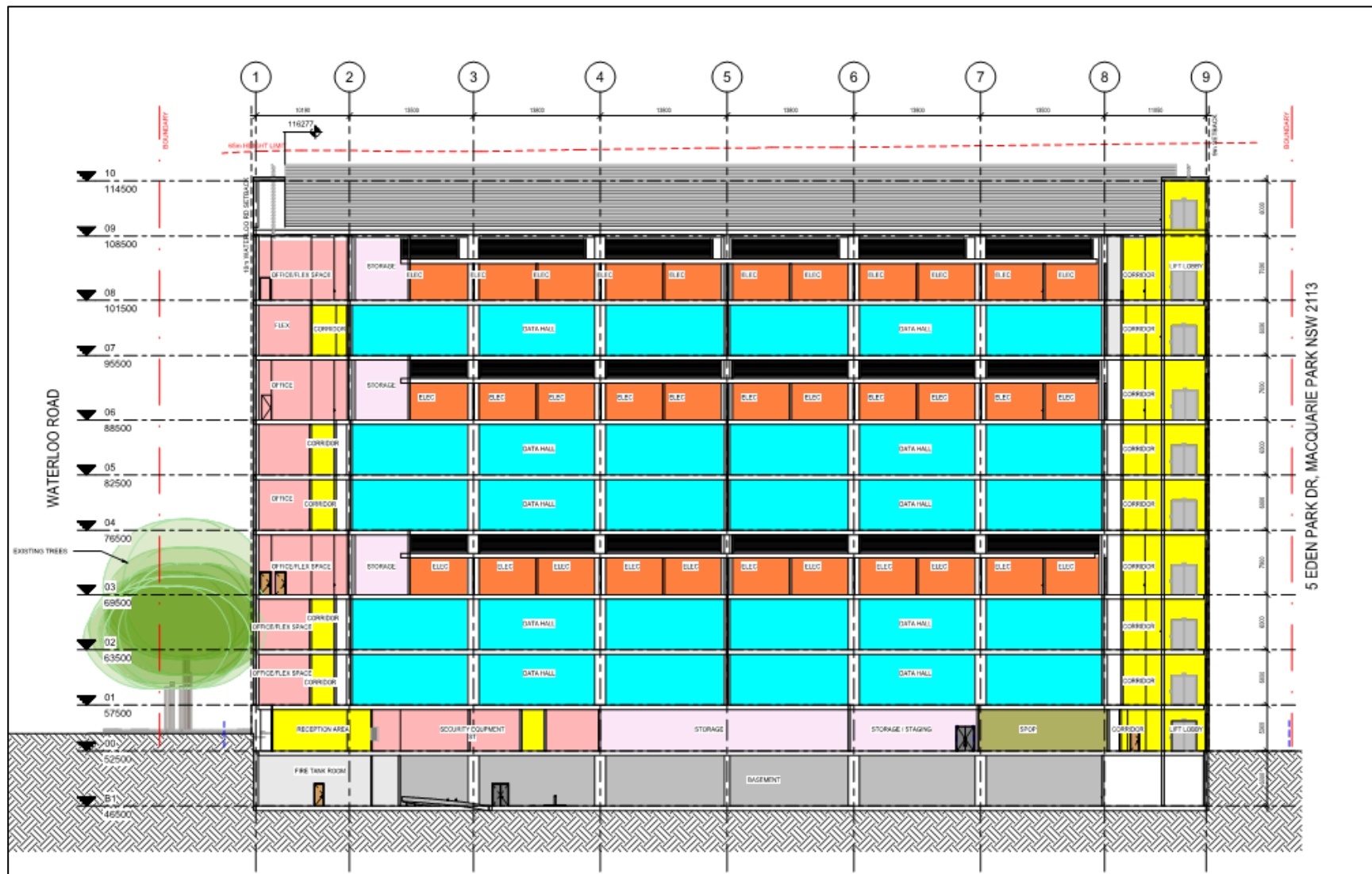


Figure 11. Concept Section 2 (Source: Greenbox Architecture, 2025)



5. STATUTORY CONTEXT

This section of the Scoping Report outlines the key statutory requirements relevant to the Site and the Proposal.

5.1 Power to Grant Approval

TABLE 7 categorises and summarises the relevant requirements in accordance with the SSD Guidelines.

TABLE 7: POWER TO GRANT CONSENT	
Matter	Consideration
Declaration of SSD	Development consent will be sought under 'Division 4.7 - State Significant Development' of the <i>Environmental Planning and Assessment Act 1979</i> (EP&A Act). Section 4.36(2) of the EP&A Act states that: <i>A State environmental planning policy may declare any development, or any class or description of development, to be State significant development.</i> Schedule 1 of Planning Systems SEPP lists development that is declared SSD. Schedule 1, Clause 25, states the following: 25 Data Centres (1) <i>Development for the purposes of data centres that has a total power consumption of more than the relevant amount.</i> (1A) <i>Subsection (1) does not apply to development on land within the area of City of Sydney</i> (2) <i>In this section -</i> Relevant amount means - (a) <i>for development in relation to which the relevant environmental assessment requirements are notified under the Act on or before 31 May 2023—10 megawatts, or</i> (b) <i>for any other development—15 megawatts</i> The Proposal is anticipated to have a total power consumption of 70 megawatts. Accordingly, the Proposal is classified as SSD.
Consent Authority	Section 4.5 of the EP&A Act and Section 2.7 of the Planning Systems SEPP stipulate that the consent authority is the Minister for Planning (or the Department as their delegate) unless the development triggers the matter set out in Section 2.7(1) in which case the consent authority will be with the Independent Planning Commission. The Proponent has not made a reportable political donation in connection with the development application.



5.2 Land use

Pursuant to the RLEP 2014, the Proposal is classified as a data centre per the following definition:

data centre means a building or place the principal purpose of which is to collect, distribute, process, or store electronic data using information technology.

Note—

Data centres are a type of **high technology industry**—see the definition of that term in this Dictionary.

5.3 Permissibility

The RLEP 2014 is the primary Environmental Planning Instrument (EPI) that applies to the Site.

The objectives and land use tables of the E2 Commercial Centre E3 Productivity Support zones pursuant to RLEP 2014 are reproduced below:

Objectives of the E2 Commercial Centre Zone

- *To strengthen the role of the commercial centre as the centre of business, retail, community, and cultural activity.*
- *To encourage investment in commercial development that generates employment opportunities and economic growth.*
- *To encourage development that has a high level of accessibility and amenity, particularly for pedestrians.*
- *To enable residential development only if it is consistent with the Council's strategic planning for residential development in the area.*
- *To ensure that new development provides diverse and active street frontages to attract pedestrian traffic and to contribute to vibrant, diverse, and functional streets and public spaces.*

Permitted without consent

- *Home occupations*

Permitted with consent

- *Amusement centres; Artisan food and drink industries; Backpackers' accommodation; Building identification signs; Business identification signs; Centre-based child care facilities; Commercial premises; Community facilities; Entertainment facilities; Function centres; Hotel or motel accommodation; Information and education facilities; Light industries; Local distribution premises; Medical centres; Mortuaries; Oyster aquaculture; Passenger transport facilities; Places of public worship; Recreation areas; Recreation facilities (indoor); Recreation facilities (outdoor); Registered clubs; Respite day care centres; Restricted premises; Serviced apartments; Tank-based aquaculture; Vehicle repair stations; Veterinary hospitals; Any other development not specified in item 2 or 4*

Prohibited

- *Agriculture; Air transport facilities; Airstrips; Animal boarding or training establishments; Boat building and repair facilities; Boat launching ramps; Boat sheds; Camping grounds; Caravan parks; Cemeteries; Charter and tourism boating facilities; Correctional centres; Crematoria; **Data centres**; Depots; Eco-tourist facilities; Electricity generating works; Environmental facilities; Exhibition homes; Exhibition villages; Extractive industries; Farm buildings; Forestry; Freight transport facilities; Heavy industrial storage establishments; Helipads; Highway*



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service centres; Home-based child care; Home occupations (sex services); Industrial training facilities; Industries; Jetties; Marinas; Mooring pens; Moorings; Open cut mining; Port facilities; Recreation facilities (major); Residential accommodation; Resource recovery facilities; Rural industries; Service stations; Sewerage systems; Sex services premises; Signage; Tourist and visitor accommodation; Transport depots; Truck depots; Vehicle body repair workshops; Waste disposal facilities; Water recreation structures; Water supply systems; Wholesale supplies

The Proponent seeks to rely on the existing use rights to permit development of a data centre within the E2 Commercial Centre portion of the Site. The Proposal is a form of investment that generates employment opportunities and economic growth. The Proposal seeks to have a high level of accessibility and amenity, particularly for pedestrians through the provision of a new road that will have facilitate an active street frontage to attract pedestrian traffic and to contribute to vibrant, diverse, and functional streets and public spaces. The forthcoming EIS will address in detail how the Proposal remains consistent with the objectives of the E2 Commercial Centre zone.

Objectives of the E3 Productivity Support Zone

- *To provide a range of facilities and services, light industries, warehouses, and offices.*
- *To provide for land uses that are compatible with, but do not compete with, land uses in surrounding local and commercial centres.*
- *To maintain the economic viability of local and commercial centres by limiting certain retail and commercial activity.*
- *To provide for land uses that meet the needs of the community, businesses, and industries but that are not suited to locations in other employment zones.*
- *To provide opportunities for new and emerging light industries.*
- *To enable other land uses that provide facilities and services to meet the day to day needs of workers, to sell goods of a large size, weight, or quantity or to sell goods manufactured on-site.*
- *To promote sustainable development, including public transport and working environments.*
- *To encourage industries involved in research and development.*

Permitted without consent

- *Home occupations*

Permitted with consent

- *Animal boarding or training establishments; Boat building and repair facilities; Building identification signs; Business identification signs; Business premises; Centre-based child care facilities; Community facilities; Depots; Function centres; Garden centres; Hardware and building supplies; Hotel or motel accommodation; Industrial retail outlets; Industrial training facilities; Information and education facilities; Landscaping material supplies; **Light industries**; Local distribution premises; Markets; Mortuaries; Neighbourhood shops; Office premises; Oyster aquaculture; Passenger transport facilities; Places of public worship; Plant nurseries; Recreation areas; Recreation facilities (indoor); Recreation facilities (major); Recreation facilities (outdoor); Research stations; Respite day care centres; Rural supplies; Service stations; Specialised retail premises; Storage premises; Take away food and drink premises; Tank-based aquaculture; Timber yards; Vehicle body repair workshops; Vehicle repair stations; Vehicle sales or hire premises; Veterinary hospitals; Warehouse or distribution centres; Wholesale supplies; Any other development not specified in item 2 or 4*

Prohibited

- *Agriculture; Air transport facilities; Airstrips; Amusement centres; Boat launching ramps; Boat sheds; Camping grounds; Caravan parks; Cemeteries; Charter and tourism boating facilities; Correctional centres; Crematoria; Eco-tourist facilities; Electricity generating works;*



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Entertainment facilities; Environmental facilities; Exhibition homes; Exhibition villages; Extractive industries; Farm buildings; Forestry; Freight transport facilities; Heavy industrial storage establishments; Helipads; Highway service centres; Home-based child care; Home businesses; Home occupations (sex services); Industries; Jetties; Marinas; Mooring pens; Moorings; Open cut mining; Port facilities; Registered clubs; Residential accommodation; Resource recovery facilities; Restricted premises; Retail premises; Rural industries; Sewerage systems; Sex services premises; Signage; Tourist and visitor accommodation; Transport depots; Truck depots; Waste disposal facilities; Water recreation structures; Water supply systems

High technology industries are a type of light industry which are permitted with consent in the E3 zone pursuant to RLEP 2014 and the Transport and Infrastructure SEPP. The Proposal will facilitate an emerging light industrial use of the Site, maintain the economic viability of local and commercial centres, and provide a land use that functions primarily to meet the technological needs of the community, businesses, and industries but that are not suited to locations in other employment zones. The forthcoming EIS will address in detail how the Proposal remains consistent with the objectives of the E3 Productivity Support zone.

5.4 Other Approvals

TABLE 8 below outlines the legislative approvals required for the Proposal in addition to a development consent under Division 4.7 of the EP&A Act.

TABLE 8: OTHER APPROVALS		
Matter	Consideration	
Approvals not required for SSD	Section 4.41 of the EP&A Act stipulates that certain authorisations are not required for SSD. The following legislative approvals would otherwise be required if the Proposal was not SSD.	
	Act	Approval Required Otherwise
	A permit under section 201, 205 or 219 of the <i>Fisheries Management Act 1994</i>	No
	An approval under Part 4, or an excavation permit under Section 139, of the <i>Heritage Act 1977</i>	No
	An Aboriginal heritage impact permit under Section 90 of the <i>National Parks and Wildlife Act 1974</i>	Subject to the detailed investigations.
	A bush fire safety authority under section 100B of the <i>Rural Fires Act 1997</i>	No. It is understood that NSW RFS will be consulted during the SEARs process.
	A water use approval under Section 89, a water management work approval under Section 90 or an activity approval (other than an aquifer interference approval) under Section 91 of the <i>Water Management Act 2000</i> .	Yes



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TABLE 8: OTHER APPROVALS

Matter	Consideration															
Consistent approvals	Section 4.42 of the EP&A Act stipulates that certain authorisations cannot be refused if they are necessary for carrying out SSD and must be substantially consistent with the consent.															
	<table> <tr> <th>Legislation</th><th>Approval Required</th></tr> <tr> <td>An aquaculture permit under section 144 of the <i>Fisheries Management Act 1994</i></td><td>No</td></tr> <tr> <td>An approval under section 22 of the <i>Coal Mine Subsidence Compensation Act 2017</i></td><td>No</td></tr> <tr> <td>A mining lease under the <i>Mining Act 1992</i></td><td>No</td></tr> <tr> <td>A production lease under the <i>Petroleum (Onshore) Act 1991</i></td><td>No</td></tr> <tr> <td>An environment protection licence under Chapter 3 of the <i>Protection of the Environment Operations Act 1997</i> (for any of the purposes referred to in section 43 of that Act)</td><td>No The Proposal will not result in the generation of electricity by means of electricity plant that is emergency stand-by plant will exceed 200 hours per year. Diesel storage capacity will also not exceed the thresholds for an EPL, which is a minimum of 2,000 tonnes. The Proposal will have a diesel storage capacity of 0.835 tonnes.</td></tr> <tr> <td>A consent under section 138 of the <i>Roads Act 1993</i></td><td>Yes Approval will be obtained post-determination.</td></tr> <tr> <td>A licence under the <i>Pipelines Act 1967</i></td><td>No</td></tr> </table>	Legislation	Approval Required	An aquaculture permit under section 144 of the <i>Fisheries Management Act 1994</i>	No	An approval under section 22 of the <i>Coal Mine Subsidence Compensation Act 2017</i>	No	A mining lease under the <i>Mining Act 1992</i>	No	A production lease under the <i>Petroleum (Onshore) Act 1991</i>	No	An environment protection licence under Chapter 3 of the <i>Protection of the Environment Operations Act 1997</i> (for any of the purposes referred to in section 43 of that Act)	No The Proposal will not result in the generation of electricity by means of electricity plant that is emergency stand-by plant will exceed 200 hours per year. Diesel storage capacity will also not exceed the thresholds for an EPL, which is a minimum of 2,000 tonnes. The Proposal will have a diesel storage capacity of 0.835 tonnes.	A consent under section 138 of the <i>Roads Act 1993</i>	Yes Approval will be obtained post-determination.	A licence under the <i>Pipelines Act 1967</i>
Legislation	Approval Required															
An aquaculture permit under section 144 of the <i>Fisheries Management Act 1994</i>	No															
An approval under section 22 of the <i>Coal Mine Subsidence Compensation Act 2017</i>	No															
A mining lease under the <i>Mining Act 1992</i>	No															
A production lease under the <i>Petroleum (Onshore) Act 1991</i>	No															
An environment protection licence under Chapter 3 of the <i>Protection of the Environment Operations Act 1997</i> (for any of the purposes referred to in section 43 of that Act)	No The Proposal will not result in the generation of electricity by means of electricity plant that is emergency stand-by plant will exceed 200 hours per year. Diesel storage capacity will also not exceed the thresholds for an EPL, which is a minimum of 2,000 tonnes. The Proposal will have a diesel storage capacity of 0.835 tonnes.															
A consent under section 138 of the <i>Roads Act 1993</i>	Yes Approval will be obtained post-determination.															
A licence under the <i>Pipelines Act 1967</i>	No															

5.5 EPBC Approval

Under the *Environment Protection and Biodiversity Conservation Act 1999* (EPBC Act), any action (which includes a development, project or activity) that is considered likely to have a significant impact on Matters of National Environmental Significance (MNES) (including nationally threatened ecological communities and species and listed migratory species), must be referred to the Commonwealth Minister for the Environment. The purpose of the referral is to allow a decision to be made about whether an action requires approval on a Commonwealth level. If an action is considered likely to have significant impact on MNES, it is declared a "Controlled Action" for which formal Commonwealth approval is required.



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The Proposal does not warrant significant impacts on MNES, therefore no further consideration of the EPBC Act is required.

5.6 Pre-Conditions to Exercising the Power to Grant Consent

The pre-conditions to exercising the power to grant consent that are relevant to the Proposal are outlined in **TABLE 9**. These matters will be addressed in detail within the EIS.

TABLE 9: PRE-CONDITIONS	
Statutory Reference	Pre-Condition
<i>Environmental Planning & Assessment Regulation 2021</i>	Section 35 - A person must not apply to a consent authority for development consent to carry out development on land identified as “Macquarie Park Corridor” other than land identified as “Macquarie Park Precinct” unless the application is accompanied by an assessment of the consistency of the development with the <i>Macquarie Park Innovation Precinct Place Strategy</i>. The Site is identified as “Macquarie Park Precinct” and therefore does not require to be assessed against the consistency of the <i>Macquarie Park Innovation Precinct Place Strategy</i>.
<i>Biodiversity Conservation Act 2016</i>	Section 7.9(2) requires an SSD development application to be accompanied by a Biodiversity Development Assessment Report (BDAR) unless the Planning Agency Head and the Environmental Agency determine that the Proposal is not likely to have any significant impact on biodiversity value. A BDAR waiver request will be prepared as part of the SSDA, given the Site is largely already developed and includes only a small number of trees.
<i>State Environmental Planning Policy (Resilience and Hazards) 2021</i>	The following pre-condition clauses in the Resilience and Hazards SEPP are relevant to the Site and the Proposal: - Chapter 3 Hazardous and offensive development - Clause 3.11 – Preparation of preliminary hazard analysis - Chapter 4 Remediation of land - Clause 4.6 - Contamination and remediation matters are to be considered in preparation and determination of the development application.
<i>State Environmental Planning Policy (Industry and Employment) 2021</i>	Section 3.6 stipulates that a consent authority must not grant development consent to an application to display signage unless the consent authority is satisfied that: - the signage is consistent with the objectives as set out in Section 3.1(1)(a), and - the signage satisfies the assessment criteria specified in Schedule 5 of the I&E SEPP. The EIS will include an assessment of any signage described in Section 3.4 of the I&E SEPP.
<i>State Environmental Planning Policy (Transport and Infrastructure) 2021</i>	The following pre-condition clauses in the Transport and Infrastructure SEPP are relevant to the Site and the Proposal: Chapter 2 Infrastructure



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TABLE 9: PRE-CONDITIONS

Statutory Reference	Pre-Condition
	○ Clause 2.122 – Traffic-generating development Section 2.48 requires the consent authority to give written notice to the electricity supply authority for the area and take into consideration any response to that notice before granting consent to a development likely to affect an electricity transmission or distribution network. Section 3.58(2) stipulates that, before determining a development application, the consent authority must— ▪ give written notice of the application to Transport for NSW within seven (7) days after the application is made, and ▪ take into consideration the matters referred to in Section 3.58(3)
<i>State Environmental Planning Policy (Sustainable Buildings) 2022</i>	The following pre-condition clause in the Sustainable Buildings SEPP are relevant to the Site and the Proposal: ▪ Chapter 3 Standards for non-residential development ○ Clause 3.2 – Development consent for non-residential development

5.7 Mandatory Consideration

TABLE 10 provides a summary of the matters that the consent authority must consider in deciding to grant consent to the Proposal. These matters will be addressed in the EIS.

TABLE 10: MATTERS FOR MANDATORY CONSIDERATION

Legislation/Statutory Reference	Matters for Consideration
Consideration under the EP&A Act	
Section 1.3	Relevant objects of the EP&A Act
Section 4.15	Relevant environmental planning instruments: ▪ <i>Environmental Planning and Assessment Act 1979</i> ▪ <i>Environmental Planning and Assessment Regulation 2021</i> ▪ <i>Biodiversity Conservation Act 2016</i> ▪ <i>Protection of the Environment Operations Act 1997</i> ▪ <i>Roads Act 1993</i> ▪ <i>State Environmental Planning Policy (Planning Systems) 2021</i> ▪ <i>State Environmental Planning Policy (Transport and Infrastructure) 2021</i> ▪ <i>State Environmental Planning Policy (Resilience and Hazards) 2021</i> ▪ <i>State Environmental Planning Policy (Biodiversity and Conservation) 2021</i>



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TABLE 10: MATTERS FOR MANDATORY CONSIDERATION

Legislation/Statutory Reference	Matters for Consideration	
	▪ <i>State Environmental Planning Policy (Sustainable Buildings) 2022</i> ▪ <i>State Environmental Planning Policy (Industry and Employment) 2021</i>	
	Relevant development control plan	The Ryde Development Control Plan 2014 (RDCP 2014) will be considered for the Proposal. The Site is also subject to the provisions of the MPP Design Guide that was adopted as part of the Macquarie Park Rezoning Proposal that was gazetted in November 2024. The Design Guide is given statutory weight by Clause 7.3 of RLEP 2014. The purpose of the Design Guide is to supplement the provisions of the RLEP 2014 and RDCP 2014 by providing detailed provisions to guide development in the MPP. It is noted that in the event of an inconsistency between the Design Guide and the RDCP 2014, the objectives and provisions in this Design Guide prevail to the extent of that inconsistency.
	Relevant draft environmental planning instruments	There are no known draft EPIs that apply to the Site.
	Relevant planning agreements or draft planning agreements	The Site is not subject to any planning agreements. However, a planning agreement will be entered into as part of the Proposal to access incentive height and floor space provisions.
	The Regulations	Sections 66 and 192 of the EP&A Regulation.
	The likely impacts of the Proposal	The likely impacts of the Proposal have been identified in Section 7 of this Scoping Report including those matters



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TABLE 10: MATTERS FOR MANDATORY CONSIDERATION

Legislation/Statutory Reference	Matters for Consideration	
		requiring further assessment in the EIS.
	Suitability of the Proposal	The Proposal aligns with the Federal, State, and local strategic policy, and the Proposal is considered suitable for the Site. This will be fully detailed and addressed within the EIS.
	Public interest	The investment in NSW's digital economy is crucial for the continued growth in Australia's data storage sector, which businesses, households, and public authorities have become reliant on for day-to-day operation. The Proposal will generate high skilled employment opportunities and be designed with consideration of all surrounding development.
	Submissions made in accordance with this Act or the regulation	Early engagement will be undertaken with the community and agencies to ensure that the views are appropriately considered and detailed in the EIS. A detailed response to any submissions will be provided following lodgement and public exhibition of the EIS.
Section 4.24	The Proposal is not a concept development.	
Section 4.65(b) Section 4.66	Data centres are prohibited in the E2 Commercial Centre, however, the Site benefits from existing use rights pursuant to Section 4.65(b) of the EP&A Act, which states: In this Division, existing use means— ... b) the use of a building, work, or land— i. for which development consent was granted before the commencement of a provision of an environmental planning	



TABLE 10: MATTERS FOR MANDATORY CONSIDERATION

Legislation/Statutory Reference	Matters for Consideration
	instrument having the effect of prohibiting the use, and ii. that has been carried out, within one year after the date on which that provision commenced, in accordance with the terms of the consent and to such an extent as to ensure (apart from that provision) that the development consent would not lapse. Section 4.66 of the EP&A Act states: 1) <i>Except where expressly provided in this Act, nothing in this Act or an environmental planning instrument prevents the continuance of an existing use.</i> 2) <i>Nothing in subsection (1) authorises—</i> a. <i>any alteration or extension to or rebuilding of a building or work, or</i> b. <i>any increase in the area of the use made of a building, work or land from the area actually physically and lawfully used immediately before the coming into operation of the instrument therein mentioned, or</i> c. <i>without affecting paragraph (a) or (b), any enlargement or expansion or intensification of an existing use, or</i> d. <i>the continuance of the use therein mentioned in breach of any consent in force under this Act in relation to that use or any condition imposed or applicable to that consent or in breach of any condition referred to in section 4.17(1)(b), or</i> e. <i>the continuance of the use therein mentioned where that use is abandoned.</i> 3) <i>Without limiting the generality of subsection (2)(e), a use is to be presumed, unless the contrary is established, to be abandoned if it ceases to be actually so used for a continuous period of 12 months.</i> 4) <i>During the period commencing on 25 March 2020 and ending on 25 March 2022, the reference to 12 months in subsection (3) is taken to be a reference to 3 years.</i> Section 4.66 of the EP&A Act permits the continuation of an existing use and reads “<i>nothing in this Act or an environmental planning instrument prevents the continuance of an existing use</i>”. Section 4.67 of the EP&A Act contemplates that the regulations may make



TABLE 10: MATTERS FOR MANDATORY CONSIDERATION

Legislation/Statutory Reference	Matters for Consideration
	provision for such things and those provisions are taken to be incorporated into the relevant EPI.
Consideration under the EP&A Regulation	
Part 7 of the EP&A Regulation prescribes the following in relation to existing use rights:	
163 Certain development allowed	
(1) An existing use may, subject to this Part— a) be enlarged, expanded, or intensified, or b) be altered or extended, or c) be rebuilt, or d) be changed to another use, but only if the other use is a use that may be carried out with or without development consent under the Act, or e) if it is a commercial use, including a light industrial use or commercial use that would otherwise be prohibited under the Act. f) if it is a light industrial use—be changed to another light industrial use or (2) However, an existing use must not be changed under subsection (1)(e) or (f) unless the change— a) involves only minor alterations, and b) does not involve an increase of more than 10% in the gross floor area of the premises associated with the existing use, and c) does not involve the rebuilding of the premises associated with the existing use, and d) does not involve a significant intensification of the existing use. (3) In this section— commercial use means the use of a building, work, or land for the purposes of a commercial premises. light industrial use means the use of a building, work, or land for the purposes of light industry.	
164 Enlargement, expansion, and intensification of existing uses	
(2) Development consent is required for any enlargement, expansion, or intensification of an existing use. (3) The enlargement, expansion or intensification must be— a) for the existing use and for no other use, and b) carried out only on the land on which the existing use was carried out immediately before the relevant day.	
166 Rebuilding of buildings and works	
(1) Development consent is required for any rebuilding of a building or work used for an existing use. (2) The rebuilding must be— a) for the existing use of the building or work and for no other use, and b) carried out only on the land on which the building or work was erected or carried out immediately before the relevant day.	
Based on the above, the Proponent seeks to rely on the existing use rights to permit development of a data centre within the E2 Commercial Centre portion of the Site. The Proposal is limited to the land of which the existing use is being carried out.	



TABLE 10: MATTERS FOR MANDATORY CONSIDERATION

Legislation/Statutory Reference	Matters for Consideration
Section 7(1) of the EP&A Regulation states that:	<i>"Development described in Schedule 3, Part 2 is declared to be designated development unless it is not designated development under Schedule 3, Part 3."</i> The Proposal does not trigger Designated Development pursuant to Schedule 3 of the EP&A Regulation.
<i>Biodiversity Conservation Act 2016</i>	The <i>Biodiversity Conservation Act 2016</i> (BC Act) and <i>Biodiversity Conservation Regulation 2017</i> (BC Regulation) seek to maintain a healthy, productive and resilient environment for the greatest well-being of the community, now and into the future, consistent with the principles of ecologically sustainable development. Part 7 of the BC Act sets out requirements for biodiversity assessments and approvals under the EP&A Act. Pursuant to Section 7.2(1) of the BC Act, development or an activity is likely to significantly affect threatened species if: (a) <i>it is likely to significantly affect threatened species or ecological communities, or their habitats, according to the test in section 7.3, or</i> (b) <i>the development exceeds the biodiversity offsets scheme threshold if the biodiversity offsets scheme applies to the impacts of the development on biodiversity values, or</i> (c) <i>it is carried out in a declared area of outstanding biodiversity value.</i> Pursuant to Section 7.9 of the BC Act, an SSD is to be accompanied by a biodiversity development assessment report (BDAR) unless the Planning Agency Head and the Environment Agency Head determine that the Proposal is not likely to have any significant impact on biodiversity values. A waiver is to be sought for the Proposal.
<i>Protection of the Environment Operations Act 1997</i>	Schedule 1 of the <i>Protection of the Environment Operations Act 1997</i> (POEO Act) contains a core list of activities that require a licence before they may be undertaken or carried out. The definition of an 'activity' for the purposes of the POEO Act is: <i>"An industrial, agricultural or commercial activity or an activity of any other nature whatever (including the keeping of a substance or an animal)."</i> Clause 9 – Chemical storage Under the POEO Act, Schedule 1, Clause 9(1) 'general chemicals storage', which would include storage of any chemicals, diesel fuel or radioactive substances, is a Scheduled Activity. Capacity to store greater than 20 tonnes (pressurised gases), 200 tonnes (liquefied gases) or 2,000 tonnes (chemicals in any other form) requires an EPL from the NSW EPA. The Proposal seeks to store 763m³ (835kg / 0.835 tonnes) of diesel and will therefore not exceed the 2,000-tonne threshold. Consideration of chemical storage will be included in the EIS. Clause 17 – Electricity generation Electricity generation is a premises-based scheduled activity. However, pursuant to Clause 17(1A), this clause does not apply to the generation of electricity by means of electricity plant that is emergency stand-by plant operating for less than 200 hours per year.



TABLE 10: MATTERS FOR MANDATORY CONSIDERATION

Legislation/Statutory Reference	Matters for Consideration
	It is understood that the stand-by generators will not be used for more than 200 hours per year and therefore no further consideration is required. This will be addressed in the EIS.
Roads Act 1993	
	Pursuant to Section 138 of the <i>Roads Act 1993</i>, consent from the appropriate roads authority will be required to carry out works in a public road – this would include works associated with the provision of Site vehicular access and construction of a new public road.
State Environmental Planning Policy (Planning Systems) 2021	
	Schedule 1 of the Planning Systems SEPP includes provisions for developments to be undertaken as SSD. Clause 25, Schedule 1 is relevant to the Proposal: Clause 25 - Data centres (1) <i>Development for the purpose of data centres that has a total power consumption of more than the relevant amount.</i> (1A) <i>Subsection (1) does not apply to development on land within the area of the City of Sydney.</i> (2) <i>In this section—</i> relevant amount means— (a) <i>for development in relation to which the relevant environmental assessment requirements are notified under the Act on or before 31 May 2023—10 megawatts, or</i> (b) <i>for any other development—15 megawatts.</i> The data centre will have a total power consumption of 70 megawatts and thus the SSD provisions apply.
State Environmental Planning Policy (Biodiversity and Conservation) 2021	
	The <i>State Environmental Planning Policy (Biodiversity and Conservation) 2021</i> (Biodiversity and Conservation SEPP) contains planning provisions relating to: ▪ Vegetation in non-rural areas; ▪ Koala protection and habitat; ▪ Water catchments; ▪ Strategic conservation planning In relation to the Site, the following matters are highlighted. Vegetation in non-rural areas The Proposal will involve removal of vegetation on the Site. As noted above, the majority of the Site is mapped as certified-urban capable land and has strategically been determined as suitable for future development. Notwithstanding, the Site contains a small amount of biodiversity values and impacts will be considered for the Proposal. The Proposal is anticipated to comply with the relevant criteria of the Biodiversity and Conservation SEPP and all relevant statutory matters will be addressed in the EIS. An Arboricultural Impact Assessment will accompany the Proposal.



TABLE 10: MATTERS FOR MANDATORY CONSIDERATION

Legislation/Statutory Reference	Matters for Consideration
<i>State Environmental Planning Policy (Transport and Infrastructure) 2021</i>	
The Transport and Infrastructure SEPP aims to facilitate the effective delivery of infrastructure across NSW. The Site is partly zoned E3 Productivity Support, which is a prescribed zone under Division 3, Clause 2.31 of the Transport and Infrastructure SEPP. Clause 2.31 states that development for the purpose of a data centre may be carried out by any person with consent on a prescribed zone. As such, the Proposal is permissible with consent in the E3 Productivity Support zone subject to the provision of the Transport and Infrastructure SEPP.	
Electricity generating works Clause 2.36(2) prescribes that development for the purpose of a back-up electricity generating plant that operates for not more than 200 hours in any year may be carried out by any person with consent on any land.	
Traffic generating development Schedule 3 of Transport and Infrastructure SEPP lists the types of development that are defined as Traffic Generating Development. The applicable trigger for traffic generating development for industrial development is 20,000m² in site area or (if the site area is less than the GFA) GFA. The Site area is 11,200m² and the GFA of the Proposal is 23,375m². The forthcoming EIS will be supported by a robust Transport and Traffic Impact Assessment.	
<i>State Environmental Planning Policy (Resilience and Hazards) 2021</i>	
The <i>State Environmental Planning Policy (Resilience and Hazards) 2021</i> (Resilience and Hazards SEPP) contains planning provisions relating to: ▪ management of hazardous and offensive development. ▪ remediation of contaminated land and to minimise the risk of harm. In relation to the Site, the following matters are highlighted.	
Hazardous and offensive development A preliminary risk screening analysis will be undertaken in accordance with the project-specific SEARs to determine whether a Preliminary Hazard Analysis is required.	
Remediation of land Under Chapter 4 of the Resilience and Hazards SEPP, where a DA is made, the consent authority must not grant consent unless: (a) <i>it has considered whether the land is contaminated, and</i> (b) <i>if the land is contaminated, it is satisfied that the land is suitable in its contaminated state (or will be suitable, after remediation) for the purpose for which the development is proposed to be carried out, and</i> (c) <i>if the land requires remediation to be made suitable for the purpose for which the development is proposed to be carried out, it is satisfied that the land will be remediated before the land is used for that purpose.</i> A Preliminary Site Investigation will form part of the forthcoming EIS. It is noted that the Site assessment will be thoroughly reviewed, and a Detailed Site Investigation and Remedial Action Plan may be required depending on the outcomes of the site assessment outcomes.	



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TABLE 10: MATTERS FOR MANDATORY CONSIDERATION

Legislation/Statutory Reference	Matters for Consideration
State Environmental Planning Policy (Sustainable Buildings) 2022	
The State Environmental Planning Policy (Sustainable Buildings) 2022 (Sustainable Buildings SEPP) encourages the design and delivery of more sustainable buildings across NSW. It contributes to NSW's target of achieving net zero by 2050 and sets sustainability standards for both residential and non-residential development. Chapter 3 applies to non-residential development. The requirements for non-residential development include the following: ▪ Consideration of the general sustainability provisions to be considered; ▪ Documentation that discloses embodied emissions; ▪ A net zero ready statement for large commercial and SSD; and ▪ For large commercial development only - submission of a NABERS commitment agreement to demonstrate that the development is on track to achieving its energy and water standards. Large commercial development is defined as non-residential development that involves the erection of new office premises with a net lettable area of at least 1,000m². The Proposal is likely to not include an office premise of 1,000m² or more. Notwithstanding, as the Proposal is classified as SSD, the consent authority must consider whether the Proposal will minimise the use of on-site fossil fuels, as part of the goal of achieving net zero emissions in NSW by 2050. An ESD Report and NABERS Embodied Emissions Materials Form will accompany the EIS identifying how the Proposal will minimise the use of on-site fossil fuels, accordingly.	

5.8 Development Standards

TABLE 11 outlines the Proposal's consistency and compliance with the relevant development standards and controls under RLEP 2014.

TABLE 11. DEVELOPMENT STANDARDS

Clause	Comment
Clause 4.3 - Height of Buildings	The E3 Productivity Support portion of the Site is mapped to have a maximum building height of 30m, and the E2 Commercial Centre portion of the Site is mapped to have a maximum building height of 37m. However, pursuant to Clause 7.7 of the RLEP 2014, the Site is afforded bonus incentives pertaining to building height and FSR - refer to Clause 7.7 below.
Clause 4.4 - Floor Space Ratio	The E3 Productivity Support portion of the Site is mapped to have a FSR of 1:1, and the E2 Commercial Centre portion of the Site is mapped to have a FSR of 2:1. However, pursuant to Clause 7.7 of the RLEP 2014, the Site is afforded bonus incentives pertaining to building height and FSR - refer to Clause 7.7 below.
Clause 4.6 - Exceptions to development standards	The Proposal seeks to exceed the maximum building height prescribed by Clause 4.3 of RLEP 2014. Notwithstanding, pursuant to Clause 7.7 of the RLEP 2014, the Site is afforded bonus incentives



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	pertaining to building height which allows for a maximum building height of 65m. The Proposal seeks to comply with this requirement. As such, a Variation Request is not sought for the Proposal.
Clause 6.2 - Earthworks	The objective of this clause is to ensure that earthworks for which development consent is required will not have a detrimental impact on environmental functions and processes, neighbouring uses, cultural or heritage items or features of the surrounding land. A detailed response to the provisions of Clause 6.3 will be provided as part of any DA lodged.
Clause 6.4 - Stormwater management	The objective of this clause is to minimise the impacts of urban stormwater on land to which this clause applies and on adjoining properties, native bushland and receiving waters. A detailed response to the provisions of Clause 6.4 will be provided as part of any DA lodged.
Clause 6.7 - Ground floor development on land in Zone E3	Clause 6.7 prescribes that development consent must not be granted for development on the ground floor of a building within Zone E3 Productivity Support if the development would result in any part of the ground floor not being used for business or employment activities. The entire ground floor of any future DA will be used as a data centre, which is an employment generating activity.
Clause 7.3 - Design Guide	Clause 7.3 prescribes that development consent must not be granted to development on the Site unless the consent authority is satisfied the development is consistent with the Macquarie Park Design Guide (the Design Guide). The Design Guide is discussed in Section 3.12 below.
Clause 7.4 - Effect on neighbouring sites	Clause 7.4 prescribes that development consent must not be granted to development on land to which this part applies unless the consent authority is satisfied the development will not result in a neighbouring site becoming— (a) a site for which consolidation with an adjoining site is not— (i) physically possible, or (ii) reasonably feasible because of the nature of surrounding development, or (b) a site that has a reduced development potential because of its size, shape, or location. Consistency with Clause 7.4 will be demonstrated as part of any DA lodged.
Clause 7.7 - Additional requirements for increased building height and floor space ratios on land other than Key Sites	The Site is identified as “Precinct 009 — Macquarie Park” on the <i>Macquarie Park Corridor Precinct Map</i>. Subclause (3) prescribes that the consent authority may approve development with a height and FSR that does not exceed the increased building height and floor space ratio identified on the <i>Macquarie Park Corridor Precinct Incentive Height of Buildings Map</i> and the <i>Macquarie Park Corridor Precinct Incentive Floor</i>



	<i>Space Ratio Map</i>, but only if the consent authority is satisfied that the development includes adequate provision for one or both of the following— (a) recreation areas that are configured and located in a way that is appropriate for the recreational purposes of the Precinct, (b) an access network that is configured and located in a way that will allow a suitable level of connectivity within the Precinct. The Site is subject to the following incentive building height and FSR development standards: Maximum Incentive Building Height: 65m Maximum Incentive FSR: 3:1 To achieve the above incentive parameters, the Proponent would be required to enter into a Planning Agreement with the City of Ryde Council. A letter of offer is to accompany the EIS.
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5.9 Macquarie Park Design Guide

The Site is subject to the provisions of the Design Guide that was adopted as part of the Macquarie Park Rezoning Proposal that was gazetted in November 2024. The Design Guide is given statutory weight by Clause 7.3 of RLEP 2014.

The purpose of the Design Guide is to supplement the provisions of the RLEP 2014 and the Ryde Development Control Plan 2014 (RDCP 2014) by providing detailed provisions to guide development in the Macquarie Park Precinct. It is noted that in the event of an inconsistency between the Design Guide and the RDCP 2014, the objectives and provisions in this Design Guide prevail to the extent of that inconsistency.

The Design Guide is discussed in more detail under the respective headings below:

TABLE 12. DESIGN GUIDE	
Clause	Comment
Part 2 - Structure Plan	The Structure Plan Map is reproduced in Figure 12 below. Part 2 of the Design Guide prescribes that development, including the provision of new streets, is to be in accordance with the Structure Plan. The Proposal is generally consistent with the Structure Plan and includes the provision of one (1) new street in the location illustrated in the Structure Plan.



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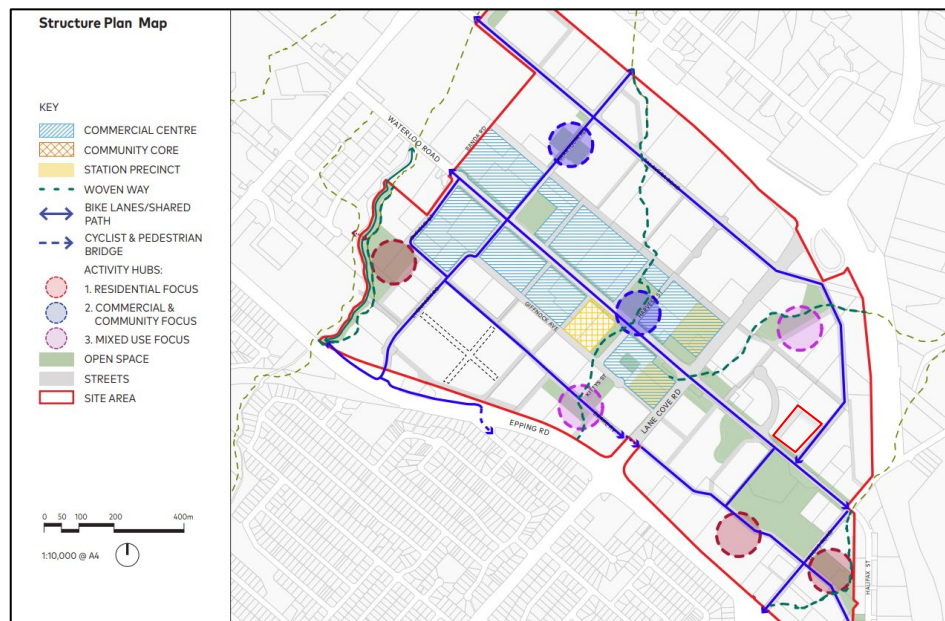


Figure 12. Structure Plan Map (Source: DPHI, 2025)

The Proposal will provide an open space setback along Waterloo Road and include bike lanes/shared paths along the new street per the Structure Plan.

Part 3 – Connecting with Country

The Design Guide states that development in the MPP should *acknowledge, celebrate, and help heal the Aboriginal Country, culture and people that have largely been obscured by the Precinct's history of 20th century business park style development.*

The Site is identified on the Connecting with Country Map as having a pathway, as shown in **Figure 13** below. The EIS will be accompanied by a Designing with Country statement that details how the Proponent has responded to the provisions of the Design Guide including a description of:

- Consultation activities and outcomes (if consultation has occurred), and how these have informed planning and design of the Proposal;
- Opportunities to enhance Aboriginal cultural values; and
- Mitigation measures to reduce any impacts to areas of Aboriginal cultural value.



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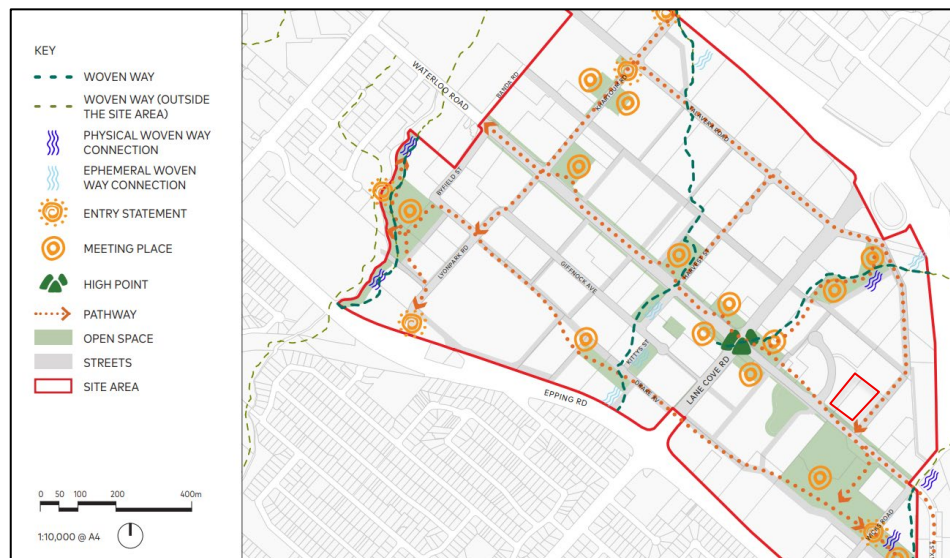


Figure 13. Connecting with Country Map (Source: DPPI, 2025)

The pathway is to signify connections between spaces within Macquarie Park. Wall treatments, murals, abutment, noise walls, patterned and coloured asphalt will all be considered as viable design options.

Part 4 – Streets and Landscape

Street Network

The Street Network Map prescribes a 20m green corridor along Waterloo Road and a new 20m wide secondary circulation route along the eastern boundary of the Site, to be dedicated to Council as public streets as shown in **Figure 14**.

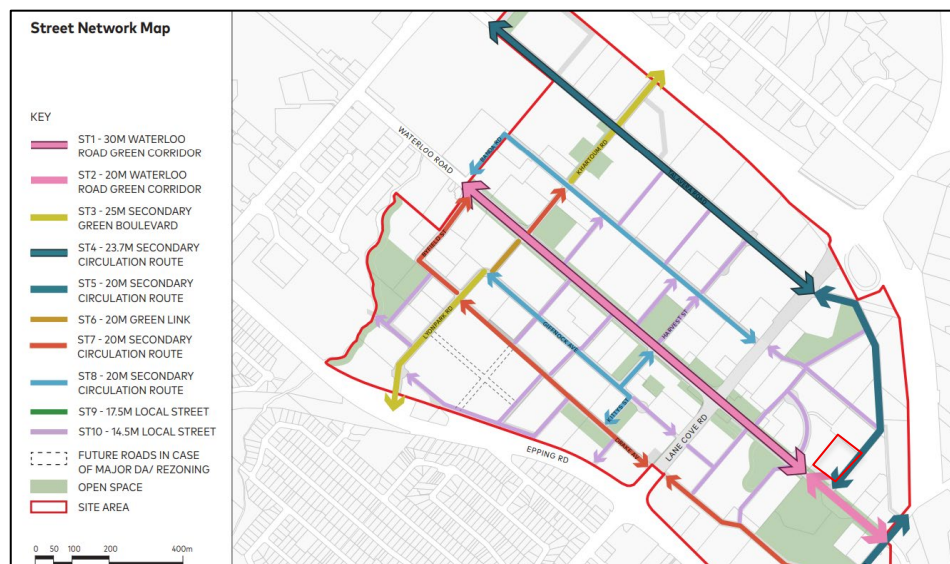


Figure 14. Street Network Map (Source: DPPI, 2025)

The Proposal seeks to construct the new road in accordance with the Design Guide. It is understood that the purpose of the new streets in the Design Guide is to improve street network permeability. The location of the proposed new street is generally consistent with the Street Network Map and is located to achieve the best design and engineering outcome that will achieve the objectives of the Design Guide.



The delivery mechanism for the new road is discussed in the Macquarie Park Infrastructure Delivery Plan. The Macquarie Park Infrastructure Delivery Plan identifies that Clause 7.7 of the RLEP 2014 provides the provision of new roads as a matter for consideration as part of the Incentive Floor Space Ratio and Incentive Height of Building controls.

Clause 7.7 prescribes that the additional height and FSR incentives are only available where the consent authority is satisfied that the development includes adequate provision for one or both of the following—

- (a) recreation areas that are configured and located in a way that is appropriate for the recreational purposes of the MPP,
- (b) an access network that is configured and located in a way that will allow a suitable level of connectivity within the MPP.

Therefore, the proposed street on the Site will be built and dedicated to Council in accordance with by Clause 7.7 of RLEP 2014.

Through-site links

As shown in **Figure 14** above, the new street through the Site contains bike lanes and shared paths. The Proposal involves delivery of these paths to improve connectivity and active transport in Macquarie Park.

Two (2) indicative through-site links are identified in **Figure 15** below. Preliminary discussions with Council have advised that the implementation of these links are likely to not be necessary given the through-site links are unlikely to benefit the locality and limit the potential development viable. The Proposal is committed to providing the through-site link at the rear of the Site as a means to improve connectivity to Eden Park Drive.

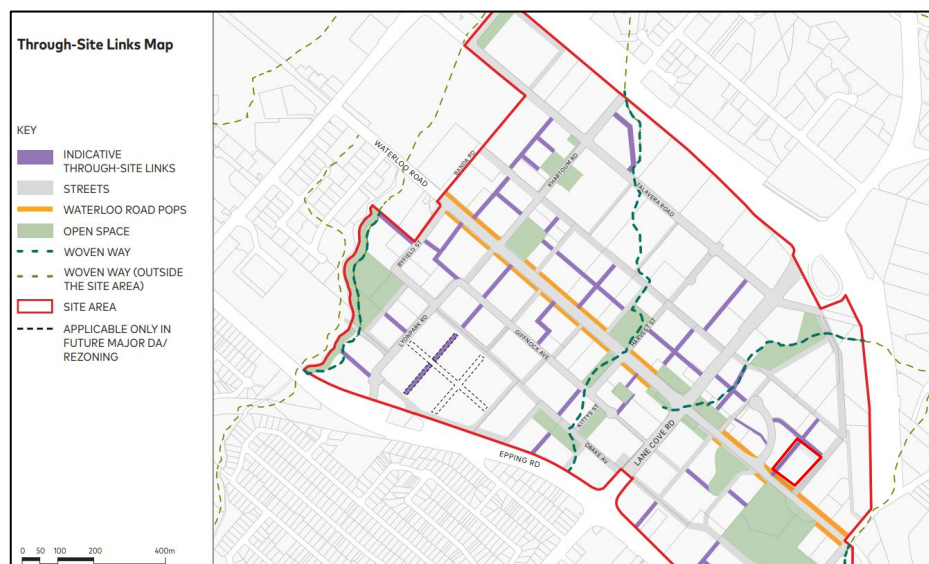


Figure 15. Design Guide Through-Site Links Map (Source: DPHI, 2025)

Part 5 Buildings

- Building Line Setbacks

The Building Setbacks Map provided at **Figure 16** below prescribes the following building setbacks for the Site.

- 6m setback to all existing and new streets unless otherwise specified.



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The Proposal is generally consistent with the Design Guide setback controls and will provide a minimum 6m setback to the new proposed road along the eastern boundary of the Site.

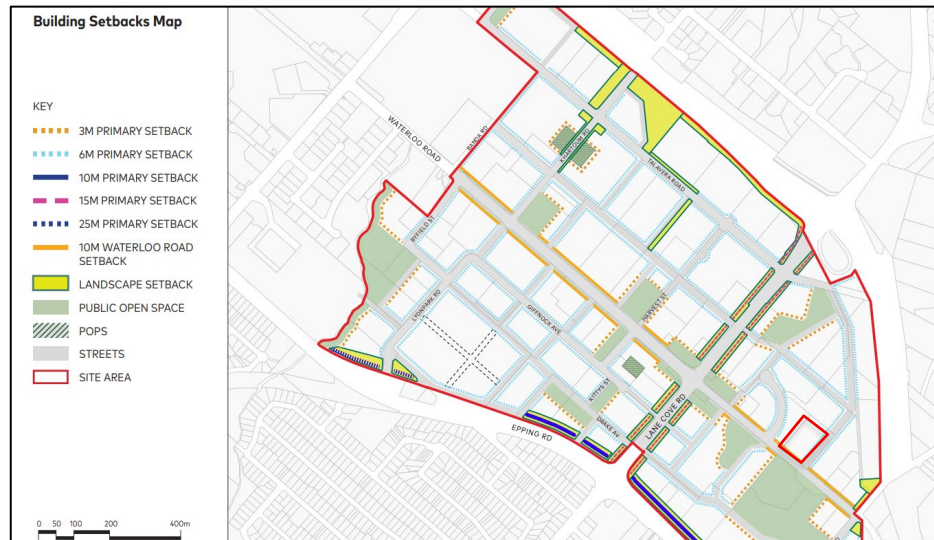


Figure 16. Design Guide Building Setbacks Map (Source: DPPI, 2025)

Building Envelopes

The Design Guide prescribes the following key points:

- Floor plates within industrial and commercial buildings at heights above either eight (8) storeys or 32m above natural ground level (whichever is lesser) are not to exceed 2,000m² GFA.
- Buildings should be designed with a single upper-level setback to avoid numerous distinct tiers. This may result in greater-than-minimum setbacks being required on the levels below the setback.
- Despite the above, the uppermost level of any building can be provided with a further additional upper-level setback.

The Proposal is generally consistent with the Design Guide building envelope controls.

Building Frontages

The Site's frontages to Waterloo Road and the new proposed road along the eastern boundary are identified as a contributory frontage on the Contributory Frontages Map as shown in **Figure 17** below. The Design Guide prescribes that contributory frontages may be a mix of office premises, business premises, retail premises and Small Office/Home Office (SOHO) frontages.

Light industrial frontages are not contemplated in this part of the Design Guide. Notwithstanding, it is understood that the Design Guide seeks to maximise street level activation in the MPP and the Proposal achieves this objective by orientating front of house activities such as ancillary offices and lobbies towards the primary street frontage.



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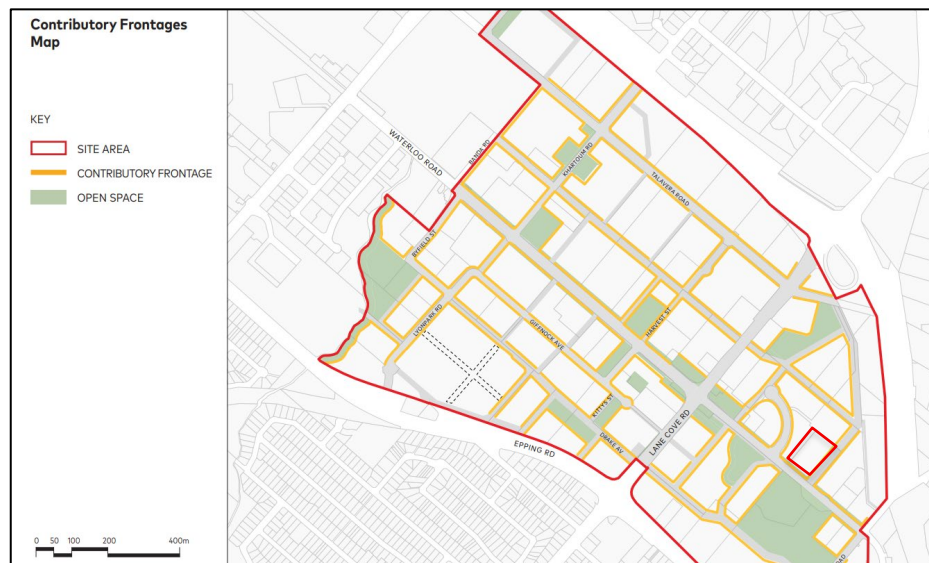


Figure 17. Design Guide Contributory Frontages Map (Source: DPHI, 2025)

Part 6 - Environmental Management & Sustainability

Canopy Coverage and Biodiversity

The Proposal achieves the objectives of this Part of the Design Guide in the following manner:

- a) *Recreates environmental values across the precinct consistent with Country.*
- b) *Maximises the future mature tree canopy and vegetation coverage across the Precinct, providing a green and healthy environment that supports active lifestyles.*
- c) *Ensures no net loss of tree canopy coverage within development lots.*
- d) *Achieves a Net Positive Impact on biodiversity.*

The canopy coverage targets prescribed by this Part require the following:

- Tree Canopy Target: 25% of the Site area
- Deep Soil Target: 20% of the Site area
- For every 300sqm of Site area or part thereof, plant at least two (2) medium trees or 1 large tree in the deep soil area.

The Proposal has been designed to achieve the above targets.

5.10 Ryde Development Control Plan 2014

The Site is subject to the provisions of the Ryde Development Control Plan 2014 (RDCP 2014). The RDCP 2014 incorporates a precinct-specific DCP, which sets controls in relation to the structure of the MPP, access network, public domain, built form, Site planning and staging, and environmental performance to guide future development in the MPP.

Is it noted that the Design Guide prevails to the extent of any inconsistency between the Design Guide and the RDCP 2014. Section 2.10 of the Planning Systems SEPP prescribes that DCPs do not apply to state significant development. Notwithstanding, compliance with the DCP has been sought and any non-compliances will be appropriately addressed as part of the SSDA submission.



6. ENGAGEMENT

This section of the Scoping Report identifies the relevant stakeholders, provides an overview of the consultation activities with the government agencies carried out to date, and sets out the consultation and engagement that will be carried out prior to the lodgement of the EIS.

6.1 Relevant Stakeholders

The following stakeholders are identified, having regard to the nature of the Proposal and its impact and/or interest:

- The Department for Planning, Housing and Infrastructure
- City of Ryde Council (Council)
- NSW Government Agencies including:
 - NSW Department of Climate Change, Energy, the Environment and Water (DCCEEW);
 - Environment Protection Authority;
 - Transport for NSW;
 - Fire and Rescue NSW;
- Service providers including:
 - Sydney Water;
 - Ausgrid;
 - NBN;
- Aboriginal Stakeholders;
- Residential properties and landowners in proximity of the Site.

6.2 Engagement Carried Out

Department of Planning, Housing, and Infrastructure

A pre-scoping meeting was held on 17 July 2025 to brief the Department staff regarding the Proposal. The meeting was attended by members of the Industry Assessments team. The key areas of discussion included the following:

- Details and scope of the Proposal;
- The proposed height, bulk and scale;
- Impacts to the adjoining sensitive land uses;
- Power consumption;
- Incorporating design principles from the Design Guide, including;
 - Incorporating the proposed road, and;
 - Incorporating the pedestrian through-site link;
- Existing use rights and confirmation of the planning approval pathway.

As a consequence of this engagement, the Proposal is considered to require project-specific SEARs given that part of the Site is zoned E2 Commercial Centre, which prohibits data centres.

A pre-DA meeting was held on 28 May 2025 with Council to brief Council staff regarding the Proposal. The key areas of discussion included the following:

- Details and scope of the Proposal;
- Incorporating design principles from the Design Guide, including;
 - Incorporating the proposed road, and;
 - Incorporating the pedestrian through-site link;



As a consequence of this engagement, the Proposal seeks to introduce the through-site link along the eastern boundary rather than the western boundary as set out in the Design Guide and incorporate it within the proposed road.

6.3 Engagement to be Carried Out

It is recognised that effective engagement with stakeholders and the community will be crucial for designing and delivering the best possible outcome for the Site. The Proponent is committed to engagement with Council, NSW Agencies, the Department, Service providers, Aboriginal Stakeholders, and the community. Residential properties in the locality, and surrounding properties are a high priority for engagement and the Proponent is committed to ensuring the local community and the surrounding landowners are aware of and can comment on the Proposal.

A Community and Stakeholder Engagement Outcomes Report will be prepared in accordance with the *Undertaking Engagement Guidelines for State Significant Projects*, March 2024 and accompany the EIS. Further, the Proposal will be subject to the statutory public exhibition process, which will provide further opportunity for agencies and members of the public to provide comments.

Key objectives of the engagement process will be to:

- Inform the local community and key stakeholders about the Proposal;
- Facilitate meaningful and accessible engagement where stakeholders are given opportunities to provide feedback about the Proposal;
- Provide opportunities for stakeholders to influence outcomes by considering and responding to stakeholder feedback; and
- Present outcomes from the engagement in a format that demonstrates consistency with the *Undertaking Engagement Guidelines*.

The following is an indicative engagement methodology anticipated to be utilised for the Proposal:

- Preparation of a newsletter;
- Formal engagement with Council and relevant agencies and authorities;
- Engagement to the surrounding industrial area, adjoining landowners and key stakeholders;
- Online surveys;
- Letterbox drop;
- Actively engage with local business community; and
- Raise awareness with and seek feedback from the surrounding community.

Figure 18 below outlines the preliminary engagement area for the Proposal.



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Figure 18. Draft Primary Engagement Area Map (Source: Google Earth / Willowtree communications, 2025)



7. PROPOSED ASSESSMENT OF IMPACTS

Having regard to the site-specific constraints and sensitivities, a preliminary due diligence has been undertaken to identify the relevant environmental issues. This section identifies the key impacts that will be further investigated and assessed within the EIS, including the proposed approach to assessing each of these matters. It also identifies the matters addressed in the scoping phase that are unlikely to result in significant impacts and do not warrant further consideration in the EIS.

This section is to be read in conjunction with **Appendix A** of this Scoping Report, which identifies key plans, policies, and guidelines that will be considered for the Proposal.

7.1 Built Form, Height, Bulk and Scale

The Proposal is anticipated to have a building height of 64m from the proposed ground level. Visual impacts, overshadowing and site topography will be considered and addressed in the EIS and informed by the following documents:

- Detailed Architectural Plans;
- Design Report;
- Civil Design Plans;
- Visual Impact Assessment (VIA);
- Community Engagement Report; and
- Landscape Plans.

Data centres have grown from an emerging sector to a pivotal sector in harnessing NSW's industrial landscape, growing exponentially due to the rise and use of artificial intelligence and cloud computing. Data centre capacity is anticipated to rapidly grow in the APAC region, accelerating from 15 gigawatts in 2023 to 27 gigawatts in 2027¹.

The Proposal will deliver a high-quality design and utilise a well-developed schedule of materials and finishes to promote development that is contextually appropriate for the MRP and the sensitive land users in the locality.

The VIA will assess impacts to all surrounding land to determine the sensitivity and magnitude of the physical scale. The combination of sensitivity and magnitude will provide a rating of impact and emphasis will be made to the sensitive land uses. The VIA will include individual viewpoints from each sensitive land use and public vantage points to determine impact and necessary mitigation measures will be integrated into the design plans. Ongoing community engagement will help inform these mitigation measures and allow for the community to participate and voice any concerns.

The Proposal is committed to ensuring that the taller elements of the building will not create unacceptable solar, wind and visual impacts to surrounding sensitive uses or the public domain. A strategy will be developed to ensure this objective, along with the operation of the Proposal are not compromised. Landscaping, civil works and setbacks will be designed to help minimise bulk and scale of the Site. Consideration of alternative designs will be further addressed in the EIS confirming why the built form is necessary for the Proposal.

7.2 Environmental Amenity

Noise and Vibration

An industry standard Noise and Vibration Impact Assessment (NVIA) will be undertaken to assess the noise and vibration generating sources during construction and operation of the Proposal. The NVIA will assess the noise and vibration from traffic generated, construction or operation works, impacts on



adjoining developments or nearby residential properties. The NVIA will outline measures to minimise and mitigate the potential noise impacts on surrounding sensitive receivers. Specifically, the assessment will consider:

- Compliance with the EPA's *Noise Policy for Industry, the Interim Construction Noise Guidelines and Road Noise Policy*;
- Noise generation from the proposed plant and equipment on sensitive receivers;
- The impact of heavy construction vehicles utilising Waterloo Road and the wider road network; and
- The likely noise emissions from the construction and operation of the Site to the sensitive receivers in the locality.

The assessment will review the existing noise environment and establish the noise emission objectives in accordance with the *NSW Noise Policy for Industry* (NPfI), along with any other additional assessment requirements specified in the SEARs for both construction and operation periods. Best practice noise mitigation strategies will be implemented as a consequence.

Air Quality and Odour Assessment

An Air Quality Impact Assessment (AQIA) will be undertaken as part of the Proposal identifying modelling potential construction and operation impacts in accordance with EPA Policy. Mitigating impacts to receivers in the locality will be a priority. A Construction Environmental Management Plan (CEMP) will be prepared outlining all air quality mitigation measures to be utilised during the construction stages of the Proposal. The CEMP will factor all sensitive receivers and adjoining development in the locality.

The AQIA will address diesel generator testing and identify a methodology to achieve the relevant pollutant emission criteria for pollutants at nearby sensitive receiver locations. An Environmental Management Plan is to be prepared for the construction and operation stages to ensure air quality impacts are suitably managed.

7.3 Integrated Water Cycle Management and Flooding

An Integrated Water Cycle Management Plan will be prepared to accompany the EIS and address the following:

- Water-related servicing infrastructure required to service the Site;
- Details of the proposed drainage design for the Site (including any on-site treatment, reuse and detention facilities, water quality management measures, and nominated discharge points);
- Erosion and sediment control measures;
- Sustainability initiatives that will minimise/reduce the demand for drinking water, including any alternative water supply and end uses of drinking and non-drinking water that may be proposed, and demonstrate water sensitive urban design and any water conservation measures that are likely to be proposed;
- Compliance with the Sydney Water requirements; and
- Flooding associated with the Site.

The Site is not prone to flooding. The Proposal will be designed to address any flooding and stormwater requirements.

7.4 Social Impact

A Social Impact Assessment (SIA) will be prepared in accordance with the *Social Impact Assessment Guideline for State Significant* (the SIA Guideline) and consider the potential impact on the community and social environment, compared to the baseline scenario of the existing use of the Site



and surrounding sensitive land uses. The SIA will address both construction and operational aspects of the Proposal and identify enhancement of positive impacts and mitigation for negative impacts as well as residual impacts. Key impacts to be considered include noise and vibration, air quality, traffic, and operation of the Site. The SIA will have particular focus on streetscape and proximity to sensitive uses such as childcare and as well as the context of significant change occurring in Macquarie Park as part of the Accelerated Transport Orientated Development framework., and the residential properties that form part of the MPP at 'Lachlans Line' and ensure appropriate mitigation measures are adopted for the Proposal.

7.5 Traffic, Transport and Accessibility

A detailed Traffic and Parking Impact Assessment will accompany the EIS and address the following key matters:

- An analysis of the existing transport network, including the road hierarchy and any pedestrian, bicycle, or public transport infrastructure;
- Details of the Proposal, including pedestrian and vehicular access arrangements, which will include the proposed road and pedestrian through-site link;
- Details on the access routes to the Site for heavy vehicles during construction;
- Consideration of the traffic impacts on existing and proposed road networks, including the impact of traffic generated from the future land uses;
- Measures to mitigate any traffic impacts, including details of any new or upgraded infrastructure required to achieve acceptable performance and safety, and the timing, viability, and mechanisms of delivery;
- Details of travel demand management measures to minimise the impact of the Proposal on general traffic; and
- Any other requirement identified by the SEARs.

The Proposal will generate a low rate of traffic as compared to other commercial or industrial development. Modelling will be undertaken to identify traffic impacts for the area as a consequence of the Proposal, with mitigation measures forming part of the EIS.

7.6 Ecologically Sustainable Development

The Proposal is committed to incorporating the principles of ecologically sustainable development (ESD) pursuant to Section 193 of the EP&A Regulation. The Proposal will include the following:

- ESD Report; and
- NABERS Embodied Emissions Materials Form.

The Proposal is committed to providing best-in-class PUE and WUE and minimising construction and operation emissions.

7.7 Infrastructure and Services

The Site contains an existing data centre and is within an area which has established infrastructure and services. The Site will be cleared of all existing buildings prior to the commencement of earthworks. Remaining infrastructure at the Site would comprise utility infrastructure connections including water and electricity. The EIS will detail the infrastructure requirements and will include information about anticipated supply of utility services including:

- Electricity
- Water
- Gas
- Sewer



- Communications

After the electricity supply requirements are understood, consultation will be undertaken with Ausgrid to determine the most suitable method to supply the required electricity to the Site. A Dial Before You Dig assessment will also be carried out as part of the EIS, to determine the locations of other utility supplies.

A Feasibility Application has been lodged with Sydney Water to identify water supply available to the Site.

The need for utility works to support the Proposal would be identified during the design development and in consultation with relevant providers. The need for any works to adjust utilities will be assessed as required within the EIS. The EIS will be accompanied by a Utility Services Plan.

7.8 Biodiversity and Ecology

Pursuant to Section 7.9 of the BC Act, an SSD is to be accompanied by a biodiversity development assessment report (BDAR) unless the Planning Agency Head and the Environment Agency Head determines that the Proposal is not likely to have any significant impact on biodiversity values.

The Site does not contain any formal biodiversity designations. Notwithstanding, any impacts on biodiversity will be considered for the Proposal and all relevant statutory matters will be addressed in the EIS. A BDAR waiver and an Arboricultural Impact Assessment will accompany the Proposal.

Where possible, the Proposal will avoid and minimise impacts to biodiversity. This is to be expanded upon in the EIS.

7.9 Landscape Design and Security

The Landscape Design will identify trees to be removed and provide justification for their removal, which will be informed by an Arboricultural Impact Assessment. The Proposal is committed to providing a compliant landscape scheme that meets the tree canopy targets of the MPP Design Guide whilst meeting the strict security requirements of future customers which include:

- Employment of a security operations team;
- Security gating and fencing;
- Designated entry and exit points;
- Secure access to and from the data halls;
- CCTV camera coverage of all areas; and
- Appropriate distancing of landscaping to avoid scaling.

A Landscape Plan is to be provided to identify how the Proposal will meet the landscaping targets.

7.10 Construction and Operation

The Proposal will address the requirement of this item, confirming how construction and operation impacts will be managed and mitigated. An emphasis is to be placed on careful consideration of potential traffic, air quality, visual and noise impacts to existing and future development in the locality during both construction (particularly associated with earthworks) and operation stages.

7.11 Civil Works

Civil works are proposed at the Site to facilitate the data centre. A Civil Works Plan will be prepared to accompany the EIS and address the following:



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- Bulk earthworks details;
- Cut/fill balance details;
- Level details;
- Final road layouts; and
- Erosion and sediment control.

7.12 Hazards and Risks

A preliminary risk screening analysis will be undertaken in accordance with the SEARs to determine whether a Preliminary Hazard Analysis is required. It is noted the quantum of diesel stored will not require an Environment Protection Licence (EPL) as it will not exceed the 2,000-tonne threshold (Proposal incorporates 0.835 tonnes of diesel storage) pursuant to the POEO Act. Further, the generator testing hours will not exceed the 200 hours threshold and therefore will not require an EPL.

A full and comprehensive analysis of dangerous goods will be provided as part of the EIS. The hazards analysis will consider the neighbouring sensitive land uses.

7.13 Aboriginal Cultural Heritage

An initial Aboriginal Heritage Information Management System (AHIMS) search identified that there are no Aboriginal sites or places in or near the Site. Notwithstanding, a detailed Aboriginal Cultural Heritage Assessment Report will be prepared to identify and assess the impact of the Proposal on any Aboriginal cultural heritage values on the land. It is expected that the findings and outcomes will remain generally the same as per the initial AHIMS search and consultation will be carried out with the Metropolitan Local Aboriginal Land Council.

7.14 Non-Aboriginal Heritage

The Site is not a heritage-listed item and is not located within a heritage conservation area. Further to this, no heritage items or heritage conservation areas are located within the vicinity of the Site. As such, a Heritage Impact Statement or Archaeology Assessment are superfluous.

7.15 Bushfire

The Site is not identified as bush fire prone land or within proximity to any vegetation. As such a bushfire assessment is not considered necessary for the Proposal due to its setting in a highly urbanised and developed area, devoid of remnant bushland and not within a mapped 'bushfire prone area'. Additionally, the Proposal will be referred to the Fire and Rescue NSW (FRNSW) for comment.

7.16 Waste Management

A Waste Management Plan will be prepared to address the following matters:

- Identify, quantify, and classify the waste streams to be generated during construction and operation;
- Provide the measures to be implemented to manage, reuse, recycle and safely dispose of this waste; and
- Identify appropriate servicing arrangements for the Site.

7.17 Stakeholder and Community Engagement

A Community and Engagement Outcomes Report (CEOR) will be prepared in accordance with DPHI Guidelines that will document the preliminary phase of engagement to help inform the preparation of the EIS and outline the engagement carried out until the lodgement of EIS. The CEOR will provide



evidence of a meaningful engagement process that is proportionate to the Proposal with the relevant stakeholder briefings undertaken and outlines the following:

- Issues raised by surrounding landowners and stakeholders;
- Response to these issues; and
- Proposed future community and stakeholder engagement based on the results of consultation.

7.18 Contamination

A Preliminary Site Investigation (PSI) will form part of the forthcoming EIS. It is noted that the Site assessment will be thoroughly reviewed, and a Detailed Site Investigation (DSI) and Remedial Action Plan may be required depending on the outcomes of the Site assessment outcomes.

The Proposal will consider any relevant findings within the PSI and DSI and ensure the Site can be made suitable for development.

7.19 Contributions, Economic and Public Benefit

The Proposal involves an investment into the MPP in excess of \$700 million. The Macquarie Park Corridor Section 7.12 Local Infrastructure Contributions Plan 2025 describes the local infrastructure that is needed to support the future development in the MPP, and the contributions that will be required to Council. It is intended to deliver a public road contemplated under the Design Guide as Works in Kind with the remaining monetary amounts payable to Council.

The provision of a planning agreement is to be confirmed for the Proposal and will be identified (if applicable) as part of the EIS.



8. CONCLUSION

This Scoping Report has been prepared in accordance the Guidelines to request **Project-Specific SEARs** for the proposed data centre at 23-25 Waterloo Road, Macquarie Park. The Proposal is declared SSD under Schedule 1, Section 25 of the Planning Systems SEPP.

The vision of the Proposal is to develop the Site into a data centre, delivering millions of dollars of investment in NSW's digital economy and operate as a critical component of Greater Sydney's surge in delivering digital infrastructure due to the increased demand in AI and cloud computing. Australia is in a unique position to become a front-runner in digital infrastructure sector within the APAC region. For this to be successful, the development of large-scale processing data centres is critical.

The Proposal will create significant levels of direct and indirect jobs during construction and operation and will contribute to the delivery of infrastructure in the MPP.

This Scoping Report has outlined preliminary information regarding the Site and the Proposal, identified the relevant strategic and statutory context, summarised the approach to engagement with stakeholders and identified the scale and nature of the impacts of the Proposal.

The information detailed in this Scoping Report is sufficient to enable the Secretary to issue Project-Specific SEARs for the preparation of an EIS.



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